

Report of the Republic of Poland
on the implementation of
the Convention against Discrimination in Education
in the years 2017-2020

Warsaw, October 2020

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Introduction

1. This interim report of the Republic of Poland on the implementation of the *Convention against Discrimination in Education* drafted in Paris on 15 December 1960 was prepared at the Ministry of National Education, in cooperation with the Ministry of Digital Affairs, Ministry of Climate, Ministry of Culture and National Heritage, Ministry of Science and Higher Education, Ministry of Family, Labour and Social Policy, Ministry of Agriculture and Rural Development, Ministry of Sport, Ministry of Justice, Ministry of the Interior and Administration, the Office for Foreigners, and the Polish National Commission for UNESCO, for the purpose of the 10th Consultation of UNESCO Member States on implementation of the *Convention* by them.
2. The Ministry of National Education has put forward a draft of this report for consultation to the Ombudsman for Civil Rights and the Ombudsman for Children Rights, and to civil society representatives: Koalicja na rzecz Osób Niepełnosprawnych, Koalicja Otwartej Edukacji, Obywatele dla Edukacji, the Polish Committee of the Helsinki Foundation for Human Rights, Social Education Society, and to the Youth representatives: Polska Rada Organizacji Młodzieżowych (the Polish Council of Youth Organizations), Rada Dialogu z Młodym pokoleniem (the Council for the Dialogue with the Young Generation) and Rada Dzieci i Młodzieży Rzeczypospolitej Polskiej przy Ministrze Edukacji Narodowej (the Council of Children and Youth of the Republic of Poland at the Minister of National Education).
3. Pursuant to Article 7 of the Convention, this report contains information about the legal solutions decided upon and measures undertaken by Poland to implement this Convention in the years 2012-2020. This document was drawn up based on the UNESCO Guidelines for Preparing Reports on the Implementation of the Convention (annex to the document No. 207 EX/2s.II – *Implementation of Standard-Setting Instruments Part II, published on 7 August 2019*).

The following abbreviations have been used in the text: the Constitution¹, MEN², USO³, UPO⁴, UKN⁵, UFZO⁶, UPSWiN⁷, ORE⁸, SIO⁹.

¹ The Constitution of the Republic of Poland of 2 April 1997 (Konstytucja Rzeczypospolitej Polskiej z dnia 2 kwietnia 1997 r.; Dziennik Ustaw [*Polish Journal of Laws*] of 1997, item 483, as amended)

² Ministry of National Education (Ministerstwo Edukacji Narodowej) – government administration office providing services to the minister responsible for education and upbringing.

³ Act of 7 September 1991 *on the System of Education* (Ustawa z dnia 7 września 1991 r. o systemie oświaty; Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1327).

⁴ Act of 14 December 2016 – *Education Law* (Ustawa z dnia 14 grudnia 2016 r. – *Prawo oświatowe*; Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 910, as amended).

⁵ Act of 25 January 1982 – *Teacher's Charter* (Ustawa z dnia 26 stycznia 1982 r. – Karta Nauczyciela; Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 2215).

⁶ Act of 27 October 2017 *on financing of educational tasks* (Ustawa z dnia 27 października 2017 r. o finansowaniu zadań oświatowych; Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 17, as amended).

⁷ Act of 20 July 2018 – *Law on Higher Education and Science* (Ustawa z dnia 20 lipca 2018 r. – Prawo o szkolnictwie wyższym i nauce; Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 85, as amended).

⁸ Education Development Centre (Ośrodek Rozwoju Edukacji) – a public nationwide teacher training institution operated by the minister responsible for education and upbringing. The centre carries out activities to improve the education system and raise the quality of education in accordance with the state policy in the field of general education and upbringing.

⁹ Education Information System (System Informacji Oświatowej).

I. Legal instruments for the implementation of the Convention

I.1. Ratifications

4. Poland has been a party to the Convention against Discrimination in Education since 1964.
5. The ratification of the 1962 *Protocol Instituting a Conciliation and Good Offices Commission to be Responsible for Seeking the Settlement of Any Disputes which May Arise between States Parties to the Convention against Discrimination in Education* is not under consideration.

I.2. The protection of rights guaranteed in the Convention in the national legal system

6. The sources of universally binding law of the Republic of Poland shall be: the Constitution, acts, ratified international agreements and regulations (Article 87 of the Constitution). The Constitution shall be the supreme law of the Republic of Poland.
7. Pursuant to the constitutional principle (Article 32 and 33 of the Constitution) that no person may be discriminated against in political, social, or economic life for any reason whatsoever, and that women and men shall have equal rights in family, political, social, and economic life, in particular, an equal right to education - **the education system and the system of higher education in Poland shall provide equal access to education at all stages.**
8. Article 70 of the Constitution provides that all persons in the Republic of Poland have the right to education. Education shall be compulsory up to the age of 18. The manner of pursuing obligatory education and learning duty are defined in the UPO.
9. The terms and conditions of admission to higher education institutions, graduation therefrom and obtaining a diploma are defined in the UPSWiN.
10. Education in public schools shall be free of charge.
It shall be allowed for higher educational institutions to provide certain educational services for a fee. The terms and conditions for collecting fees and amounts thereof are regulated in the UPSWiN.
11. In order to provide the citizens with a universal and equal access to education, public authorities shall create and support systems for individual, financial, and organisational aid for pupils and students. The terms and conditions for granting aid are defined in the Act of 12 March 2004 *on Social Welfare* (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 1507, as amended), the USO and the UPSWiN.
12. The Act of 6 January 2005 *on National and Ethnic Minorities and Regional Language* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 823) - regulates matters connected with maintaining and developing cultural identity of national and ethnic minorities, preserving and developing regional languages, civic and social integration of members of national and ethnic minorities, as well as the manner of implementing the principle of equal treatment of persons regardless of ethnicity, and determine the tasks and competencies of government administration bodies and local government units relating to these matters.
13. Implementation of the right of persons from national and ethnic minorities to learn the language of that minority or to learn in that language, as well as the right of these persons to learn history and culture of that minority, as well as implementation of the right of

persons using a regional language to learn that language or in that language shall take place on the principles and in the mode defined in the USO.

II. Implementation of the Convention

II.1. Access to education – legal guarantees

14. The main legal basis of the education system shall be the Constitution. In the part concerning basic freedoms and rights of citizens, the Constitution stipulates that:
 - every person shall have the right to education, education shall be compulsory up to the age of 18,
 - education in public schools shall be free of charge, an act may allow for provision of certain education services by public higher education institutions for a fee,
 - parents shall have the right to choose schools other than public schools for their children; citizens and institutions shall have the right to establish schools and higher education institutions,
 - public authorities shall provide the citizens with universal and equal access to education - for this purpose, they shall create and support individual financial and organisational assistance systems for pupils and students,
 - higher education institutions shall have autonomy on terms provided for in an Act.
15. The education system is regulated by the following legal acts:
 - Act of 14 December 2016 - Education Law (Ustawa z 14 grudnia 2016 r. – Prawo oświatowe (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 910, as amended),
 - Act of 14 December 2016 – Regulations introducing the Education Law Act (Ustawa z 14 grudnia 2016 r. – Przepisy wprowadzające ustawę – Prawo oświatowe (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 60, as amended),
 - Act of 7 September 1991 on the System of Education (Ustawa z dnia 7 września 1991 r. o systemie oświaty (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1327),
 - Act of 27 October 2017 on Financing of Educational Tasks (Ustawa z 27 października 2017 r. o finansowaniu zadań oświatowych (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 17, as amended),
 - Act of 26 January 1982 – Teacher's Charter (Ustawa z 26 stycznia 1982 r. – Karta Nauczyciela (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 2215).
16. The education system in Poland shall provide in particular:
 - exercise of the right of every citizen to education and of the right of children and youth to upbringing and care,
 - support of the upbringing role of the family by the school,
 - upbringing understood as supporting the child in development towards full maturity
 - in the physical, emotional, intellectual, spiritual and social sphere - strengthened and supplemented through activities related to prevention in terms of problems of children and youth,
 - possibility of establishing and operating schools and establishments by various entities,
 - adjustment of contents, methods and organisation of education to the mental and physical capabilities of pupils, as well as the possibility of seeking psychological and pedagogical assistance and special forms of didactic work,

- possibility of receiving education in all types of schools by children and youth with disabilities, socially maladjusted and in danger of becoming socially maladjusted, in accordance with their individual needs in terms of development and education as well as aptitudes,
- care over pupils with disabilities by enabling them to pursue an individual education process, forms of education and educational curricula, as well as rehabilitation,
- care over extraordinarily talented pupils, by enabling them to pursue individual curricula and to graduate in a shorter time,
- upholding the sense of national, ethnic, language and religious identity, in particular learning the language and the pupils' own history and culture,
- propagation of access to schools graduation from which enables one to pursue higher education,
- possibility of supplementing general education, gaining or changing professional and specialist qualifications by adults,
- reducing the differences in the conditions of education, upbringing and care between individual regions of the country, especially urban and rural areas,
- shaping pro-social attitudes with pupils, including through the possibility of participation in volunteering activities, conducive to active participation in social life,
- disseminating knowledge and skills necessary to actively participate in national and international culture and art among children and youth,
- maintaining safe and hygienic conditions for education, upbringing, and care in schools and other institutions;
- disseminating knowledge about the principles of sustainable development among children and youth, and shaping attitudes fostering its implementation on a local, national and global scale.
- dissemination of knowledge among children and youth on the principles of rational nutrition and prevention of food waste,
- taking care of pupils in a difficult financial and life situation,
- adjusting the directions and content of education to labour market requirements,
- shaping entrepreneurship attitudes in pupils conducive to active participation in economic life, including through the application of innovative programme, organisational, or methodological solutions in the education process,
- preparing pupils to choose a profession and their educational profile,
- conditions for the development of pupils' interests and aptitudes by organising extracurricular and out-of-school classes,
- disseminating knowledge about safety among children and youth and shaping appropriate attitudes towards threats, including those related to the use of information and communication technologies and extraordinary situations,
- shaping pupils' skills of efficient use of information and communication technologies,
- supporting the teaching of the Polish language and in the Polish language among the Polish diaspora and Poles residing abroad and children of migrating employees.

The UPO sets out the main principles of:

- division of competencies in managing schools and public institutions at the central, regional and local level as well as powers of school leaders, teachers, pupils and parents,
- establishing and operating public and non-public facilities,
- fulfilment of the obligatory education and learning duty,
- recruitment to public schools and education facilities,

- organising of education and upbringing in public schools and facilities,
- pedagogical supervision,
- teaching children and youth with special educational needs,
- further education of adults,
- creating education and professional development institutions for teachers.

The USO includes provisions on:

- assessing, classifying, and promoting students in public and, accordingly, non-public schools,
- the system of external exams,
- use school curricula and pre-school education programmes, as well as clearing textbooks for school use in schools and using educational and exercise materials,
- providing financial support to pupils.

The UFZO regulates issues related to:

- the educational part of the general subsidy,
- public financial support for non-public facilities of pre-school education, non-public schools and non-public facilities as well as public facilities of pre-school education, public schools and public facilities operated by ministers, by legal persons who are not local government unit or by natural persons,
- fees for pre-school education,
- subsidising tasks in the scope of pre-school education,
- equipping schools and Polish schools with textbooks, educational materials, and auxiliary books (including for disabled pupils),
- financing material aid,
- reimbursement of expenses between local government units,
- financing of regional, local and governmental programmes.

17. The higher education system in Poland shall be regulated by the following legal acts:

- Act of 20 July 2018 – Law on Higher Education and Science (Ustawa z dnia 20 lipca 2018 r. – Prawo o szkolnictwie wyższym i nauce (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 85, as amended),
- Act of 3 July 2018 – Provisions introducing the Act - Law on Higher Education and Science (Ustawa z dnia 3 lipca 2018 r. – Przepisy wprowadzające ustawę – Prawo o szkolnictwie wyższym i nauce (Dziennik Ustaw [*Polish Journal of Laws*] of 2018, item 1669, as amended),
- Act of 7 July 2017 on the National Academic Exchange Agency (Ustawa z dnia 7 lipca 2017 r. o Narodowej Agencji Wymiany Akademickiej (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 1582).

18. The Act of 3 December 2010 on the Implementation of Certain Provisions of the European Union in the Scope of Equal Treatment (Ustawa z dnia 3 grudnia 2010 r. o wdrożeniu niektórych przepisów Unii Europejskiej w zakresie równego traktowania (Dziennik Ustaw [*Polish Journal of Laws*] of 2016, item 1219 as amended) – implements the following directives within the scope of its regulation:

- 1) Council Directive [86/613/EEC](#) of 11 December 1986 *on the application of the principle of equal treatment between men and women engaged in an activity, including agriculture, in a self-employed capacity, and on the protection of self-employed women during pregnancy and motherhood* (OJ L. 359 of 19.12.1986, p. 56; Official Journal of the European Union Polish Special Edition: Chapter 5, v. 1, p. 330);

- 2) Council Directive [2000/43/EC](#) of 29 June 2000 *implementing the principle of equal treatment between persons irrespective of racial or ethnic origin* (OJ L 180, 19.07.2000 p. 22; Official Journal of the European Union Polish Special Edition: Chapter 20, v. 1, p. 23);
- 3) Council Directive [2000/78/EC](#) of 27 November 2000 *establishing a general framework for equal treatment in employment and occupation* (OJ L 303, 02.12.2000 p. 16; Official Journal of the European Union Polish Special Edition: Chapter 5, v. 4, p. 79);
- 4) Council Directive [2004/113/EC](#) of 13 December 2004 *implementing the principle of equal treatment between men and women in the access to and supply of goods and services* (OJ L 373 of 21.12.2004, p. 37);
- 5) Directive [2006/54/EC](#) of the European Parliament and of the Council of 5 July 2006 *on the implementation of the principle of equal opportunities and equal treatment of men and women in matters of employment and occupation (recast)* (OJ L 204 of 26.07.2006, p. 23);
- 6) Directive 2014/54/EU of the European Parliament and of the Council of 16 April 2014 *on measures facilitating the exercise of rights conferred on workers in the context of freedom of movement for workers* (OJ L 128 of 30.04.2014, p. 8).

Performance of tasks related to the implementation of the principle of equal treatment was entrusted to the Commissioner for Human Rights and Government Plenipotentiary for Equal Treatment (Pełnomocnik Rządu do Spraw Równego Traktowania) (Article 18 of the Act of 3 December 2010 *on the Implementation of Certain Provisions of the European Union in the Scope of Equal Treatment*).

19. Admission to public nursery schools, public other forms of pre-school education, public schools, and public facilities - is regulated by the provisions of Chapter 6 of the UPO, including:
 - recruitment procedure, criteria and rules of admission; content of applications, required documents and statements; deadlines (Articles 130 – 153 of the UPO);
 - authorisation for the minister responsible for education and upbringing to determine, by way of a regulation, the method of conversion of individual criteria into points in order to ensure the admission of candidates to selected schools on equal and transparent terms of assessing their knowledge, skills, and achievements, and the method of determining the scoring in the case of persons exempted from the obligation to take the eighth-grade exam or to a given subject included in the eighth-grade exam, as well as the composition and detailed tasks of the recruitment committee, and the detailed procedure for conducting recruitment, and supplementary proceedings (Article 162 of the UPO);
 - special principles of recruitment to secondary schools run by the Minister of Defence (Article 143 of the UPO);
 - rules for transition of a pupil to another type of school (Article 164 of the UPO).
20. Mandatory sets of education objectives and teaching content for individual stages of education shall be defined in the core curriculum regulated by way of a regulation of the minister responsible for education and upbringing. The core curriculum for a given educational stage formulates requirements for all pupils following this educational stage. A teacher, taking into account the teaching content determined on the basis of the curriculum, shall develop a curriculum which shall be presented to the school headmaster

for approval. The curriculum should be adapted to the needs and capabilities of pupils for whom it is intended (Article 22a of the USO).

The provisions of the core curriculum indicate that schools and individual teachers take actions aimed at individualised support of each student in accordance with his or her needs and capabilities.

21. Teaching pupils with disabilities, including pupils with mild intellectual disabilities, shall be adapted to their psychophysical capabilities and learning pace. The choice of forms of individualisation should result from identification of the potential of each pupil. The teacher should select tasks so that on one hand they do not interrupt learning opportunities, and on the other hand they do not reduce motivation to deal with challenges (regulation of the Minister of National Education of 14 February 2017 *on the core curriculum for pre-school education and general education in primary schools, including for pupils with moderate or severe intellectual disability, general education for stage-one sectoral VET schools, general education for special schools preparing for employment, and general education for post-secondary schools* (Dziennik Ustaw [Polish Journal of Laws] item 356, as amended) and the regulation of the Minister of National Education of 30 September 2018 *on the core curriculum for general upper secondary schools, technical upper secondary schools, and second-stage sectoral VET schools* (Dziennik Ustaw [Polish Journal of Laws] item 467, as amended).
22. Admission to higher education institutions, conditions for graduation, rights and obligations of a student (including the right to material aid, to a discount on fees for public transport, disciplinary responsibility of students) are regulated by the provisions of the UPSWiN, including:
 - forms and levels of higher education (Articles 63-67);
 - conditions for admission to higher education institutions, rules of recruitment to higher education institutions, admission to higher education institutions on the basis of confirmation of learning outcomes, conditions for graduation from higher education institutions and obtaining a diploma (Articles 69-72, Article 76);
 - conditions and amounts of fees charged (Article 79).
 - conditions and criteria for granting benefits to students (Articles 86-95).

II.2. Equal opportunities in education

II.2.1. Ensuring the possibility of learning in nursery schools and general schools to all learners

23. The commune council shall determine a network of public nursery schools and preschool classes in primary schools operated by the commune. In cases justified by demographic and geographical conditions, the commune council may supplement this network with other forms of pre-school education which are organised for children at the place of residence or in another location that is as close by as possible.

The network of public and non-public nursery schools and preschool classes in primary schools, together with other forms of pre-school education, should provide children residing in the commune with the possibility of using pre-school education.

Travel distance of a child performing the obligation of one-year pre-primary education and a five-year-old child from home to a public or non-public nursery school, preschool class in a primary school, another form of preschool education facility where the commune ensures conditions for performing this obligation and exercising the right to preschool education should not exceed 3 km.

If the travel distance exceeds 3 km, the commune shall provide free transport and care for the duration thereof or reimburse the costs of travel of the child and their guardian using public transport, if travel is provided by parents.

In addition, the commune shall provide five and six-year-olds with disabilities and children up to 9 years old, who have been issued a decision on the need for special education, free transport and care during transport to the nearest nursery school, preschool class at a primary school, other preschool education facility or rehabilitation and education centre.

The commune may organise free transport and care during transport to a nursery school, preschool class at primary school, or other form of preschool education facility also in cases where there is no such obligation.

24. The network of public primary schools should be organised in a way that allows all children to pursue obligatory education.

A child's travel distance between their home and school cannot exceed:

- 1) 3 km - in the case of primary school grades I-IV;
- 2) 4 km - in the case of primary school grades V-VIII.

If a child's travel distance between their home and school, district of which includes the child's place of residence:

- 1) exceeds the above-mentioned distance, the commune shall provide free transport and care during travel or reimburse the child's costs of travel by public transport, if transport is provided by parents, and until the child reaches the age of 7 - also reimburse the costs of travel of the child's guardian by public transport;;
- 2) does not exceed the aforementioned distance, the commune may organise free transport, ensuring care for the duration thereof.

The commune shall:

- 1) provide disabled students with free transport and care for the duration thereof to the nearest primary school, and pupils with motor disabilities, including aphasia, with moderate or significant intellectual disability - also to the nearest secondary school, until the end of the school year in a calendar year in which the pupil reaches the age of 21;
- 2) ensure free transport and care for the duration thereof to the rehabilitation and education centre for children and youth with profound intellectual disabilities, as well as children and youth with multiple disabilities, one of which is an intellectual disability until the end of the school year in the calendar year in which they reach:
 - a) 24 years of age – in case of pupils with multiple disabilities, one of which is an intellectual disability,
 - b) 25 years of age – in case of participants in rehabilitation and education classes.

The commune may organise free transport and care for the duration thereof to a secondary school or youth education centre, youth socio-therapy centre, special school and education centre, special education centre and a rehabilitation and education centre for disabled children and youth also when no such obligation exists.

II.2.2. Monitoring the fulfilment of obligatory education and learning duty

25. Parents of a child subject to obligatory education shall:
- 1) carry out any activities necessary for enrolment of the child at a school;
 - 2) ensure that the child attends classes on a regular basis;
 - 3) provide the child with conditions which enable them to prepare for classes;
 - 4) inform, until 30 September of each year, the primary school headmaster, competent for the place of residence of the child, about pursuing obligatory education in a manner specified in Article 36 (10) or (11) of the UPO.
26. Upon request of the head of the commune (mayor, president of the city/town) where a child's place of residence is located, parents of said child shall inform the commune head about the form of fulfilment of this obligation as well as any changes in this regard.
27. Parents of a child who performs obligatory education or learning duty outside the school on the basis of the consent of the leader of the primary and secondary school shall provide the child with conditions for education specified in this permission.
28. Controlling compliance with the obligation to undergo a one-year pre-primary education shall be the responsibility of the leader of the primary school, catchment area of which encompasses the child's place of residence.
- Headmasters of public and non-public nursery schools and primary schools with preschool classes, as well as teachers teaching in public, non-public and other pre-school institutions are required to inform the headmaster of the school, the catchment area of which encompasses the child's place of residence that the child fulfils the abovementioned obligation in a nursery school, preschool class at a primary school, or another pre-school institution respectively, as well as about any changes in that regard.
- Headmasters of public primary schools shall control the fulfilment of obligatory education by children residing in the catchment areas of these schools, and the commune shall control the fulfilment of the learning duty by youth residing in the commune, including keeping records of compliance with obligatory education and learning duty.
- The commune head (mayor, city president) shall be obliged to provide leaders of public primary schools within the commune with information on the current state and changes in the register of children and youth aged 3-18.
29. Failure to fulfil the obligation compulsory one-year pre-primary education, obligatory education or learning duty shall be subject to enforcement in accordance with the administrative enforcement procedure regulations.
- Failure to fulfil the obligation of compulsory one-year pre-primary education, obligatory education or learning duty shall be understood as a not excused absence within a month of at least:
- 50% of the days of classes at nursery school, preschool class in a primary school, other preschool education facility, primary school, secondary school or establishment;
 - 50% of the classes if the learn duty is fulfilled by way of practice at the workplace or attending a qualifying vocational course.

II.2.3. Education of people coming from abroad

30. Foreigners taking advantage of education and care in public nursery schools, public other forms of preschool education and in non-public nursery schools, preschool units in non-public primary schools and in non-public other forms of preschool education, as well as in public primary schools, public art schools and in public facilities, including art facilities,

and in public upper secondary schools up to the age of 18 or graduating from secondary school on conditions applicable to Polish citizens.

Educational services provided by public schools for adults, public second-stage sectoral VET schools, public post-secondary schools, public art schools, public facilities and public colleges for social services employees as well as further education in the form of qualifying vocational courses may be used, on conditions applicable to Polish citizens, by:

- 1) citizens of member states of the European Union, of member states of the European Free Trade Association (EFTA) - parties to the Agreement on the European Economic Area (Iceland, Liechtenstein, Norway) and the Swiss Confederation, as well as members of their families having the right of residence or the right of permanent residence;
 - 2) persons of Polish origin as defined in the repatriation regulations;
 - 3) persons who were granted in the territory of the Republic of Poland:
 - permanent residence permit;
 - supplementary protection, and their family members;
 - tolerated residence permit;
 - humanitarian residence permit, and their family members;
 - temporary protection;
 - residence permit for a long-term EU resident;
 - temporary residence permit in connection with the circumstances referred to in Article 127, Article 159 (1), Article 176 or Article 186 (1.3) or (1.4) of the Act of 12 December 2013 on foreigners (Ustawa z dnia 12 grudnia 2013 r. o cudzoziemcach, Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 35);
 - 4) persons who were granted the status of a refugee, and members of their families;
 - 5) persons applying for international protection and members of their families;
 - 6) holders of a valid Pole's Card;
 - 7) persons for whom such entitlement results from international agreements;
 - 8)) holders of a residence card with the annotation "access to the labour market", Schengen visa, or national visa issued in order to perform work in the territory of the Republic of Poland.
31. In light of Article 165 (5) of the UPO, other foreigners may learn in public schools for adults, public post-secondary schools, public art schools, public facilities and public colleges of social services employees, and take advantage of further education in the form of qualification vocational courses as: scholarship holders receiving scholarship of the minister responsible for education and upbringing, scholarship holders receiving the scholarship granted by the authority governing the school or the facility or by the headmaster of the school or the facility, as well as on a paid basis. The fee amount and method of payment thereof, taking into account the anticipated costs of education and the possibility of total or partial exemption from this payment, shall be determined by the authority governing the school.
32. Foreigners shall be admitted to schools on the basis of documents without the need to perform their validation. Exceptions include post-secondary schools, where the condition for admission is to have completed a secondary education. A foreign certificate confirming secondary education may be recognised in Poland by virtue of law or by decision of the Regional Education Superintendent.

A public school headmaster may qualify a pupil coming from abroad to an appropriate class or an appropriate semester, taking into account also the age thereof, the opinion of a parent of the pupil or the student himself/herself if he/she is a legal adult.

33. Foreigners subject to obligatory education or learning duty, who do not have the command of the Polish language or whose command thereof is on a level that is insufficient to be able to take advantage of the education system shall have the right to additional free-of-charge Polish language lessons. Additional Polish language lessons shall be organised, in the school the foreigner learns in accordance with the core curricula of general education, by the local commune authority that operates the school. Taking additional Polish language classes by foreigners shall not be time-limited. Foreign nationals may also take part in remedial classes concerning a given subject for 12 months. The total duration of additional Polish language and remedial classes cannot exceed 5 hours a week.

Authorities operating public and non-public schools may create preparatory classes for students coming from abroad. The purpose of introducing this organisational form is to support the effectiveness of education of persons who have learned in schools functioning in foreign education systems.

The funds necessary for the implementation of the above solutions are covered by educational subsidy (Regulation of the Minister of National Education *on the division of the educational part of the general subsidy for local government units* (rozporządzenie Ministra Edukacji Narodowej w sprawie podziału części oświatowej subwencji ogólnej dla jednostek samorządu terytorialnego).

34. Foreign pupils subject to obligatory education or learning duty, who do not have command of the Polish language or whose command of it is at a level insufficient to take advantage of education, have the right to receive aid provided by a person having command of the language of the country of origin of the foreign student, employed as a teacher's aide by the school leader, for a period not longer than 12 months.
35. Foreign diplomatic agencies or consulates or cultural and educational associations of a given nationality can organise, at a school, in agreement with the school leader and upon consent of the governing authority, courses in the language and culture of the country of origin for foreign nationals subject to compulsory education.

Higher education for foreigners

36. Foreigners may enrol to and follow higher education studies, post-graduate studies, specialist education and other forms of education on the basis of:
- international agreements, in accordance with the rules set out in these agreements;
 - agreements concluded with foreign entities by higher education institutions, in accordance with the rules set out in these agreements;
 - decision of the minister;
 - decision of the director of the National Agency for Academic Exchange in relation to its scholarship holders;
 - administrative decision of the rector.
37. Detailed information on foreigners in the higher education and science system, including the possibility of exemption from fees for various educational services and applying for material aid, can be found in Articles 323 and 324 of the UPSWiN.

II.2.4. Financial aid for pupils and students

38. A pupil shall have the right to material aid from the funds allocated for this purpose in the state budget or in the budget of the competent local government unit. Financial assistance shall be granted to pupils with a view to reducing the differences in the access to education, enabling them to overcome barriers to the access to education due to their difficult financial situation and also supporting the education of talented pupils.

Financial assistance shall be available to: (1) students of public and non-public schools, and non-public art schools with the rights of public art schools, and students of colleges of social services employees - until the completion of education, however not longer than until the age of 24; (2) students of public and non-public rehabilitation and education centres - until the end of the learning duty (Article 90b (1)-(3) of the USO).

Financial assistance shall be of a social or motivational character. Financial aid benefits of a social character include: 1) scholarship, 2) school allowance. Financial aid benefits of a motivational character include: 1) scholarship for academic performance or sports achievements; 2) scholarship of the President of the Council of Ministers; 3) scholarship of the minister responsible for education and upbringing; 4) scholarship of the minister responsible for culture and national heritage protection. A student can be granted financial assistance of a social and motivational character at the same time (Article 90c (1)-(4) of the USO).

39. Maintenance-type financial aid benefits

The provision of maintenance-type financial aid services shall be the task of the commune (Article 90p of the USO). The commune shall receive a special grant from the state budget for co-financing these benefits (Article 70 of the UFZO).

The amount of the scholarship paid to students shall from 1 October 2018 be from PLN 99.20 to PLN 248.00 a month and may be paid for a period between one month to ten months in a given school year. Income entitling to apply for a scholarship since 1 October 2018 is PLN 528 net per family member. The above amount is calculated on the basis of the provisions of the Act of 12 March 2004 *on Social Assistance* (Ustawa z dnia 12 marca 2004 r. o pomocy społecznej). Income criteria shall be verified every 3 years.

40. Financial aid benefits of a motivational character include:

Scholarship for academic performance or sports achievements (Article 90g of the USO)

The school may grant a scholarship for academic performance or sports achievements;

The scholarship for academic performance may be granted to pupils who have obtained high average scores and at least a good evaluation of behaviour in the period (semester) preceding the period (semester) in which the scholarship is granted, and the scholarship for sports achievements may be granted to pupils who have achieved high results in sports competitions at least at the inter-school level and at least good assessment of behaviour during the period (semester) preceding the period (semester) in which the scholarship is granted.

The condition for obtaining at least good evaluation of behaviour does not apply to students of second-stage sectoral VET schools, post-secondary schools, and schools for adults.

The scholarship for academic performance shall not be granted to pupils of grades 1 to 3 of primary school, nor to pupils of grade 4 of primary school until the end of the first period of education.

The scholarship for sports achievements shall not be granted to pupils of grades 1 to 3 of primary school.

Scholarship of the President of the Council of Ministers – beginning from the school year 2019/2020 - amounts to PLN 300 per month (Regulation of the Council of Ministers of 3 January 2019 *amending the regulation on scholarships of the President of the Council of Ministers, of minister responsible for education and upbringing, and of minister responsible for culture and national heritage protection* (Rozporządzenie Rady Ministrów z dnia 3 stycznia 2019 r. *zmieniające rozporządzenie w sprawie stypendiów Prezesa Rady Ministrów, ministra właściwego do spraw oświaty i wychowania oraz ministra właściwego do spraw kultury i ochrony dziedzictwa narodowego*; Dziennik Ustaw [Polish Journal of Laws] of 2019, item 1615).

Scholarship of the minister responsible for education and upbringing (Article 90i of the USO)

The scholarship granted by the minister responsible for education and upbringing may be granted to pupils and students of a public and non-public school for youth, public and non-public second-stage sectoral VET school, and a post-secondary school with outstanding academic achievements, in particular:

- winners of an international competition or winners and finalists of nationwide single-subject competitions or tournaments,
- winners of contests for the best academic thesis organised by a scientific institute or association,
- upper secondary school pupils with the best academic results according to an individual educational or teaching programme,
- pupils taking part in higher education institution classes provided for in the course of study on the basis of the provisions of the higher education institution regulations on the conditions for participation of exceptionally talented pupils in classes conducted as part of the course of study,
- pupils who achieved high results in sports competitions at the national or international level.

The minister responsible for education and upbringing shall publish the number and amount of scholarships to be provided in a given year on the website of the appropriate ministry. The scholarship of the minister responsible for education and upbringing shall be granted in the form of a one-off cash prize. Between 2016 and 2019, the scholarship amounted to PLN 3,000. Candidates shall be selected by the school shortly after the termination of educational courses by submitting individual applications to the Regional Education Authorities. The school may submit any number of applications. The number of scholarship recipients is approx. 387 students a year.

Scholarship of the minister responsible for culture and national heritage protection

Between 2016 and 2019 the minister responsible for culture and national heritage protection granted 478 scholarships to pupils of art schools providing vocational education, who obtained a very good average score on artistic and professional subjects, and received awards in international or national artistic competitions. The scholarship amounted to PLN 4200.

41. Benefits for students

The UPSWiN (Articles 86-97) provides for the possibility for a student to apply for a maintenance grant, a scholarship for the disabled, aid payment, the rector's scholarship –

financed from state budget, as well as the possibility of granting a student a scholarship financed by a local government unit, and a merit-based scholarship for academic performance or sports achievements financed by a natural person or a legal person who/that is not a state or local government legal person.

All students are entitled to benefits financed from the state budget, regardless of the university status at which they study (public, non-public), the form of study (full-time, part-time) or the student's age. Detailed criteria for granting benefits, including their amount, are established by the rector of the university in consultation with the student council.

A maintenance grant may be awarded to a student in a difficult financial situation whose monthly income per person in the family does not exceed the income determined by the university, taking into account the statutory income thresholds. In justified cases, the student may receive a scholarship in an increased amount.

A scholarship for the disabled – may be awarded to a student who has a disability certificate, a certificate on the degree of disability, or a certificate equivalent to these certificates.

Aid – may receive a student who is temporarily in a difficult life situation.

Rector's scholarship – may be awarded to a student who has achieved outstanding academic, scientific or artistic achievements, or competitive sporting achievements at least at national level.

42. “Good Start” Government Programme.

The Programme has been implemented since 2018. Its aim is to equalise educational opportunities of children regardless of the cultural, social and material capital of their families. Based on the programme, pupils aged 7 to 20 (in the case of the disabled, up to 24 years of age) learning in schools are granted the one-off “good start” benefit of PLN 300 per person in connection with the beginning of the school year. The “good start” benefit is payable regardless of income.

Since 2019, support under the “Good Start” programme in connection with the beginning of the school year is also granted to students of post-secondary schools and schools for adults.

In 2018, commune and district governments paid out 4,408.2 thousand “good start” benefits for the amount of PLN 1,365.3 million (including service costs). In 2019 – 4,499.9 thousand benefits for PLN 1,393.6 million. In the Budget Act for 2020, PLN 1,420 million has been planned for the implementation of the aforementioned task (since July 2020, the process of applying for the benefit, determination the right to it and pay-outs is ongoing).

II.2.5. Persons with special educational needs

II.2.5.1. Disabled persons

Education of students with special educational needs

43. Education of children and youth with special educational needs shall be carried out in each type and kind of school – general, special, or integration schools: primary schools, secondary schools - general upper secondary schools, technical upper secondary schools, first-stage sectoral VET schools, second-stage sectoral VET schools, post-secondary schools, schools preparing for employment.

Applicable regulations provide a range of possible, flexible solutions in terms of individualisation of the education process of pupils with special educational needs. Thanks to these solutions, each child is provided with support at school.

44. In accordance with the provisions of the UPO and regulations issued on their basis, pupils covered by special education – socially maladjusted pupils, children at risk of social maladjustment, and pupils with intellectual disabilities (e.g. blind, visually impaired, deaf, hearing impaired, having motor disabilities including aphasia, autism, including Asperger's syndrome, with multiple disabilities) or mild intellectual disability, implement the same general education core curriculum as their fully abled peers.
45. Children and youth with moderate or significant intellectual disabilities fulfil obligatory education and learning duty on the basis of a separate general education core curriculum, developed for primary school, lower secondary school, and three-year special school preparing for employment.
46. In the period covered by this report, schools and institutions educating children and youth with disabilities organised individualised teaching, which, according to the needs, enabled education in the scope available to them, improvement of impaired functions, rehabilitation and psychological and pedagogical assistance, based on a decision on the need for special education issued by the certifying team operating in the public counselling and guidance outpatient clinic, including special guidance services. On the other hand, children and youth suffering from severe intellectual disabilities fulfilled the one year of compulsory pre-school education, compulsory education and learning duty through participation in individual or group rehabilitation-pedagogical activities organised on the basis of certificates on the need to participate in such activities.
47. In 2019 (as at 30 September 2019, according to the SIO), 8456 participants were covered by rehabilitation and education classes, including: 131 – in nursery schools, 3448 – in primary schools, 4 – in general upper secondary schools, 54 – in special school preparing for employment, 11 – in counselling and guidance centres, 2052 – in residential special schools, 2748 – in rehabilitation and education centres, and 8 – in preschool units.
48. Dla uczniów, którym stan zdrowia uniemożliwiał lub znacznie utrudniał uczęszczanie do szkoły, organizowano indywidualne nauczanie zgodnie z przepisami rozporządzenia Ministra Edukacji Narodowej z dnia 28 sierpnia 2014 r. *w sprawie indywidualnego* For pupils whose health condition prevented from attending school or significantly hindered their ability to do so, individual teaching was organised in accordance with the provisions of the Regulation of the Minister of National Education of 28 August 2014 *on individual compulsory one-year pre-primary education for children and individual teaching of children and youth* (Dziennik Ustaw [Polish Journal of Laws] of 2014, item 1157, as amended) and the Regulation of the Minister of National Education of 9 August 2017 *on individual compulsory one-year pre-primary education of children and individual teaching of children and youth* (Dziennik Ustaw [Polish Journal of Laws] of 2017, item 1616, as amended). Pupils/students staying for treatment in medical entities were provided with education and upbringing and care at schools operating in these entities, pursuant to the Regulation of the Minister of National Education of 8 March 2013 *on organisation of education and conditions and forms of implementation of special care and care activities in nursery schools and special schools organised in medical entities and social assistance units* (Dziennik Ustaw [Polish Journal of Laws] of 2013, item 380, as amended) and the Regulation of the Minister of National Education of 24 August 2017 *on organisation of education and conditions and forms of implementation of special care and care activities*

in nursery schools and special schools, organised in medical entities and social assistance units (Dziennik Ustaw [Polish Journal of Laws] of 2017, item 1654, as amended).

49. In 2019, 21210 schools of various kinds and types operated in the education system, including the largest number – 17610 mainstream schools, without integration classes and without special classes, and 1248 mainstream schools with integration classes, 98 mainstream schools with special classes, and 67 mainstream schools with special and integration classes, as well as 2047 special schools and 104 integration schools.
50. Pursuant to the provisions of the Regulation of the Minister of National Education of 2 November 2015 *on the types and detailed principles of operation of public institutions, conditions of stay of children and youth in these institutions, and the amount and rules of payments to be made by parents for their children's stay in these institutions* (Dziennik Ustaw [Polish Journal of Laws] of 2015, item 1872, as amended) and the Regulation of the Minister of National Education of 11 August 2017 *on public educational and upbringing institutions, youth care centres, youth socio-therapy centres, residential special schools, special care centres, rehabilitation and care centres, and institutions ensuring care and upbringing to pupils during the period of learning outside the place of permanent residence* (Dziennik Ustaw [Polish Journal of Laws] of 2017, item 1606), for children and youth who, due to their disability, cannot attend schools in the place of residence, **special school and education centres** operate, in which these pupils can fulfil their obligatory education and learning duty, are provided with round-the-clock pedagogical care, and **special educational centres** ensuring education and care for children and youth with disabilities and at risk of social maladjustment.
51. According to the data from the SIO, as at 30 September 2019, these facilities had 11,655 wards, of whom:
 - 10579 in special schools and education centres,
 - 1076 in special education centres.
52. In 2019, activities related to the development of systemic solutions aimed at improving the quality of education of pupils with special educational needs and promoting inclusive education at nursery schools and schools were continued. The activities were carried out: as part of the work of the Team for Development of an Education Model for Pupils with Special Education Needs (Zespół do spraw opracowania modelu kształcenia uczniów ze specjalnymi potrzebami edukacyjnymi) appointed by the minister responsible for education and upbringing in October 2017, within a project entitled *Wspieranie podnoszenia jakości edukacji włączającej w Polsce* [Support for Increasing the Quality of Inclusive Education in Poland] (PWRS Project), ongoing activities of the MEN, ORE and Education Research Institute [Instytut Badań Edukacyjnych]. The team completed work on 30 December 2019, drawing up a document entitled “Education Model for All” - presenting a comprehensive proposal of solutions to improve the quality of education for all learners.

Under the PWRS Project, the work of the MEN on solutions in raising the quality of education is supported by the European Agency for Special Needs and Inclusive Education. The project is divided into two phases – the first one was implemented from July 2018 to June 2019. The second began in September 2019 and will end in the first half of 2021. The result of the stage one work is 16 recommendations for an inclusive education system. The result of the project will be assumptions of legislative changes in inclusive education.

Textbooks, educational and practice materials for disabled pupils:

53. In accordance with the applicable educational regulations:
- 1) a teacher may decide to implement a school curriculum: using a textbook, educational material or practice material, or without using a textbook or the above-mentioned materials.
The curriculum may also be implemented with the use of, in particular, devices, equipment, or software useful for the implementation of this programme, taking into account the educational needs and psychophysical capabilities of pupils¹⁰. The basis for selection of textbooks, educational materials and practice materials shall be an analysis of educational needs of a particular disabled pupil attending, in accordance with their parents' decision, a general, integration, or special school;
 - 2) a group of teachers teaching in I-III grades of primary school and a group of teachers teaching a given school subject in grades IV-VIII of primary school and in secondary schools may present a proposal of more than one textbook or educational material to the school headmaster in the case of disabled students covered by education,¹¹
 - 3) disabled students, except for students with moderate or severe intellectual disabilities, implement the same general education core curriculum as their fully abled peers and can use textbooks accepted for school use by the minister responsible for education and upbringing available on the market.
54. In order to ensure equal access to textbooks, educational materials and practice materials for disabled students attending primary schools:
- 1) regulations were introduced allowing for providing public primary schools with textbooks, educational materials or practice materials for which a local government unit receives a special grant from the state budget, granted by the province governor¹². The purpose subsidy is calculated and granted for equipping public primary schools¹³. In the case of disabled pupils who received a decision on the need for special education, the above amounts are increased by multiplying them by indicators amount of which has been specified in the regulation of the Minister of National Education¹⁴. The purpose subsidy may be used to cover the cost of printing and copying of textbooks, educational materials and practice materials for didactic purposes or purchase devices enabling printing or copying of these textbooks and materials, and in the case of disabled pupils who have been issued a decision for the necessity of special education - also for purchase of equipment or software enabling reading textbooks, educational materials or practice materials in electronic form¹⁵;
 - 2) editorial and linguistic guidelines have been developed for the development of textbooks and guidelines for universal graphic design of textbooks (as part of cooperation between employees of the MEN and textbook publishers and specialists dealing with adapting textbooks to educational needs and psychophysical capabilities

¹⁰ Article 22 aa and 22 ab (3) of the USO.

¹¹ Article 22 ab (2.4) of the USO.

¹² Article 55 (3) of the UFZO

¹³ Article 55 (5) of the UFZO

¹⁴ Regulation of the Minister of National Education of 20 January 2018 *on the level of indicators increasing amounts of special purpose subsidy to supply primary schools with schoolbooks educational and practice material for students with disabilities* (Dziennik Ustaw [Polish Journal of Laws] of 2018, item 611).

¹⁵ Article 56 (7) of the UFZO

of disabled pupils), which will significantly affect the accessibility of contents and friendly nature of the textbook for the pupil¹⁶;

3) for stage I of the education (grades I-III of primary school), versions of textbooks admitted for use in schools were developed:

- in the Braille system for blind pupils,
- with enlarged font for pupils with impaired vision,
- containing pictograms with PCS symbols in addition to the adapted textbook¹⁷, as well as multimedia versions with recordings in the Polish Sign Language (PJM) for pupils who have difficulties in learning and/or communicating, including deaf, impaired of hearing, with intellectual disability, autism and aphasia;

4) for stage II of education (grades IV-VIII of primary school) the following were developed:

- adaptation of textbooks for blind pupils in the Braille system;
- adaptation of textbooks for pupils with vision impairments in enlarged print;
- internet portal (search engine) meeting the requirements of WCAG 2.0 and educational materials adapted to educational needs and psychophysical capabilities of the disabled, hearing impaired, with intellectual disability, autism and aphasia, which were systematically published on the portal. They were prepared on the basis of textbooks currently accepted for school use for primary school grades IV-VIII. The materials may be viewed both on-line and downloaded with an option to print. They contain appropriate text and graphic adjustments (adapted illustrations, charts, diagrams, etc.), as well as PCS symbols and video recordings in PJM;

5) for stage I of education (grades I-III of primary school), the following were developed in the scope of access to practice materials:

- practice materials entitled “Język polski na plus”, used to record knowledge about the Polish language and support the process of acquiring communication skills by pupils. The topics were arranged in accordance with the order of case introduction, cognition and tenses present in glottodidactics. Each chapter includes a number of grammatical exercises related to the reality that is close to children (e.g. classes, various forms of leisure and holidays, development of interests). Consolidating knowledge of grammar may be supported by additional tables and comments,
- practice materials in the form of task sheet notebooks. Task sheets are not linked to any single textbook. Their purpose is to support the work of teachers, regardless of which textbooks they use. Task sheets help to implement the universal contents included in the general education core curriculum. Task sheets are used to consolidate and expand the knowledge of pupils. In addition, they may constitute attractive homework or a form of a test. The proposed sheets should be used in a manner tailored to the capabilities of a given child, e.g. when working with a child with a severe hearing impairment, it is crucial to take into account the fast-growing requirements related to language competence. Cards introducing a new letter may serve as an illustrated dictionary, which will help remember known words and serve to remind less frequently used words. A child who does not acquire language by hearing must learn it with the use of written texts. The dictionary created on their

¹⁶ <https://www.gov.pl/web/edukacja/wytyczne-edytorskie-i-jezykowe-do-opracowania-podrecznikow-oraz-wytyczne-do-uniwersalnego-projektowania-graficznego-podrecznikow>

¹⁷ PCS - graphic symbols showing individual concepts (the system is a support for people with difficulties in communication, with understanding contents, and participation in the didactic process).

own encourages children to learn the language. A glossary created by a child can also be supplemented with PCS symbols¹⁸.

- 6) for stage I and 2 II education (grades I-VIII of primary school), the Polish Sign Language (PJM) Course (Kurs Polskiego Języka Migowego] was developed.

Auxiliary books in the form of **The Polish Sign Language Course** (Kurs Polskiego Języka Migowego) dedicated to children who start learning to sign and have basic command of that language were developed, tailored to the educational needs and psychophysical capabilities of the disabled and hearing impaired pupils. The modular structure of the course allows one to start learning at any level – adapted to individual communication competences of a given pupil. The first volumes are developed for A1 – A2 language competence level. With senior pupils in mind, further volumes of sign language course were developed at B1 (grades IV-VI of primary schools) and B2 (grades VII-VIII of primary schools) levels. Each part has been prepared in the form of a separate multimedia application which enables work with the textbook on a desktop computer – both at home and in class (using a multimedia board). The material in PJM is presented in the form of video clips;

- 7) pupils with moderate and severe intellectual disabilities received practice materials that were developed specifically to cater to their educational needs. Task sheets are adapted to education activities distinguished in the core curriculum, such as personal and social functioning, classes developing communication skills, classes developing creativity. The practice materials meet contemporary international standards, inter alia, they use PCS symbols, their structure makes it possible to use individual sheets depending on thematic needs and print them (there is a possibility of printing them with the use of funds obtained from the special-purpose subsidy for supplying schools with practice materials);

- 8) for stage III of the education (secondary schools), education materials are developed adapted to the educational needs and psychophysical capabilities of pupils with disabilities, blind and visually impaired, in the form of adapting textbooks admitted for use in schools, accordingly, in the Braille system and in large print, for grade I of secondary schools and it is envisaged that soon analogous materials will be ordered for grade II of secondary school. In addition, pupils may use adaptations of textbooks in the form of educational materials developed in previous years.

55. In accordance with the provisions of Article 1 (5-7) of the UPO, the education system ensures in particular, adapting the teaching content, methods and organisation to psychophysical abilities of pupils as well a possibility of taking advantage of psychological and pedagogical assistance and special forms of didactic work; the possibility of receiving education in all types of schools by children and youth with disabilities, socially maladjusted and at risk of maladjustment – according to their individual development, educational needs and abilities; taking care of pupils with disabilities by providing them individual education forms and teaching programmes and revalidation activities. Teaching pupils covered by special education shall be adjusted to their psychophysical capabilities and learning pace. The adjustment is made on the basis of the education and therapeutic programme prepared individually for a given pupil, and

¹⁸ Cf. E. Danowska-Florczyk, P. Mostowski, *Język polski na plus. Klasa I. Materiał ćwiczeniowy dla uczniów niepełnosprawnych mających trudności w uczeniu się i/lub komunikowaniu się, w tym niesłyszących, słabosłyszących, z niepełnosprawnością intelektualną, autyzmem i afazją*, Warszawa 2017.

recommendations included in the decision on the need of special education (article 127 (3) of the UPO).

56. Education of a disabled pupil, who received a decision on the need for special education due to disability¹⁹, shall be carried out in accordance with the indications included in the individual educational and therapeutic programme²⁰. The programme is developed for a specific pupil by a team of teachers and specialists working with the pupil, after conducting a multi-specialist assessment of the level of their functioning (at least twice in every school year), taking into account the diagnosis and conclusions formulated on its basis and recommendations contained in the decision on the need for special education. Based on the information obtained from periodic multi-specialist evaluations of the level of functioning of the pupil, the above-mentioned team decides on individualisation of didactic and educational activities in the scope of selection of content, methods, forms, resources, and pace of work. These actions should correspond to the individual needs of the disabled pupil and contribute to the improvement of their functioning in the class and school. Individualisation of the teaching process cannot entail a reduction in educational requirements.
57. A teacher adapting teaching to the psychophysical capabilities and pace of learning of a given disabled pupil with a given type of disability covered by special education, while implementing the core curriculum of general education, may use textbooks approved for school use by the minister responsible for education and upbringing available on the market, and in addition to a textbook purchased from the special-purpose subsidy allowed for school use, provided for all pupils, has the right and possibility to additionally select a textbook or educational material adapted to the educational needs and psychophysical capabilities of a particular disabled pupil. They may also purchase a device enabling printing or copying of textbooks and educational materials, as well as hardware or software enabling reading textbooks, educational materials or practice materials in electronic form. Thus, they can carry out the educational process with peers.
58. **Government programme of assistance for disabled pupils in the form of co-financing the purchase of school textbooks, educational materials and exercise materials in the years 2020-2022** (Resolution no. 89/2020 of the Council of Ministers and the Regulation of the Council of Ministers of 26 June 2020 *on detailed conditions of providing assistance for disabled pupils in the form of co-financing the purchase of school textbooks, educational materials and exercise materials in the years 2020-2022* (uchwała nr 89/2020 Rady Ministrów z dnia 26 czerwca 2020 r. oraz rozporządzenie Rady Ministrów z dnia 26 czerwca 2020 r. w sprawie szczegółowych warunków udzielania pomocy uczniom niepełnosprawnym w formie dofinansowania zakupu podręczników, materiałów edukacyjnych i materiałów ćwiczeniowych w latach 2020–2022), Dziennik Ustaw [Polish Journal of Laws] of 2020, item 1227).

The program is the implementation of one of the priority tasks of the state which is the elimination of poverty and social exclusion, and the continuation of activities aimed at equalizing educational opportunities, and supporting the development of disabled children and youth. In previous years, the implementation of aid for the above-mentioned groups

¹⁹ Types of disabilities have been listed in § 1 (1) of the Regulation of the Minister of National Education of 9 August 2017 *on the conditions for organising education, upbringing, and care for children and youth with disabilities, socially maladjusted and at risk of social maladjustment* (Dziennik Ustaw [Polish Journal of Laws] of 2020, item 1309).

²⁰ § 6 (1) of the Regulation of the Minister of National Education of 9 August 2017 *on the conditions for organisation of education, upbringing and care for children and youth with disabilities, socially maladjusted, and at risk of social maladjustment* (Dziennik Ustaw [Polish Journal of Laws] of 2020, item 1309).

of students took place on the basis of the government program adopted annually, and which consisting of co-financing purchase of textbooks and educational materials for them.

In the years 2020-2022, the program will cover students with disabilities: visually impaired, deaf, hard of hearing, with motor disabilities, including aphasia, autism, including Asperger syndrome, with mild, moderate or severe intellectual disability, and students with multiple disabilities (in the case when these are disabilities from among the above-mentioned disabilities), having a certificate of the need for special education, referred to in Article 127 (10) of the UPO, or a decision on the need for special education, referred to in article 312 (1) of the Act of 14 December 14, 2016 – *Regulations introducing the Educational Law Act* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 60, as amended) – studying in secondary schools and art schools providing general education in the field of secondary school general education.

In the years 2020-2022, financing of the equipment with textbooks, educational materials and exercise materials students with disabilities studying in primary schools and in art schools providing general education in the field of primary school is carried out as part of the task of the minister responsible for education and upbringing, carried out in accordance with the UFZO.

II.2.5.2. Support for pregnant girls and young mothers

59. The **“Za życiem” [Pro Life] programme of comprehensive support for families** (Resolution no. 160 of the Council of Ministers of 20 December 2016 *on the “Za życiem” comprehensive support for families* (Uchwała nr 160 Rady Ministrów z dnia 20 grudnia 2016 r. w sprawie kompleksowego wsparcia dla rodzin „Za życiem”, Monitor Polski [*Official Journal of the Republic of Poland*] of 2016, item 1250) includes actual and full assistance for persons with disabilities in their social and professional integration, and support for their families. In addition, assistance for women during pregnancy (including with complications), childbirth and puerperium as well as development of support for mothers with minor children is envisaged.

One of the priorities of the programme is to provide assistance to pregnant pupils by providing them with the possibility of continuing education by a school or facility, by units operating the aforementioned schools and facilities. Therefore, the USO has been supplemented by Article 90v, obliging the minister responsible for education and upbringing to cooperate with local government units in order to enable pregnant pupils to continue education.

In 2017, the MEN carried out tasks in the scope of preparation and maintenance of a place in dormitories or boarding houses for pregnant pupils in the form of a single room in which maximum comfort is ensured until the child's birth – a total of 217 places for pregnant pupils have been created.

60. Pursuant to Article 2 (3) of the Act of 7 January 1993 *on family planning, protection of the human foetus and conditions of admissibility to interrupt a pregnancy* (Dziennik Ustaw [*Polish Journal of Laws*] of 1993, item 78, as amended), the school is obliged to grant pregnant pupils a leave of absence and other assistance necessary to complete her education, if possible, which does not cause delays passing individual subjects. If pregnancy, childbirth or puerperium result in the inability to take exams important for the continuity of the teaching process, the school is obliged to set an additional time limit for the exam which is convenient for the woman, within a period not longer than 6 months.

In the case of complications posing a risk of miscarriage, a specialist may issue a decision on need for individual teaching. At that time, at the request of parents of the pregnant youth, or pregnant adult student, a guidance and counselling centre issues a decision on the need to provide individual education for an appropriate period of education.

61. Pursuant to Article 85 (2) of the UPSWiN, a pregnant student or a student being a parent, may not be refused consent to:
- 1) pursuing tertiary education in a specific field and level according to an individual organisation of studies until they are completed – in the case of full-time studies;
 - 2) a leave from classes, and a leave from classes with the possibility of commencing verification of obtained learning outcomes specified in the study programme.

The leave for a pregnant student shall be granted for the period until the date of birth of the child. For a student who is a parent, leave shall be granted for a period of up to 1 year (if the end of the leave falls during the semester, it may be extended until the end of the semester).

Minimum age for marriage

62. Pursuant to Article 10 (1) of the Act of 25 February 1964 – the Family and Guardianship Code (Kodeks rodzinny i opiekuńczy – Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1359), *a person below eighteen years of age may not enter into marriage. However, for important reasons, the guardianship court may allow a woman of at least sixteen years of age to marry if the circumstances indicate that the marriage will be for the good of the raised family*".

II.2.5.3. Minors in juvenile detention centres and juvenile shelters

63. Pursuant to Article 8 (12) of the UPO, the Minister of Justice is the body authorised to establish and operate public schools in juvenile detention centres and juvenile shelters. Schools operating in juvenile detention centres and juvenile shelters are public schools within the meaning of Article 14 (1) and 2 of the UPO. They form an integral part of the centre and shelter, as they ensure the implementation of the tasks thereof, that means general and vocational education (§ 15.1 (2) and § 32 (2) of the Regulation of the Minister of Justice of 17 October 2001 *on juvenile detention centres and juvenile shelters*, Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 487).
64. The schooling structure at juvenile detention centres and juvenile shelters includes: 8-year primary school and 3-year first-stage sectoral VET school. In accordance with the Regulation of the Minister of National Education of 28 February 2019 *on the detailed organisation of public schools and public nursery schools* (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 502) for primary school pupils who have reached the age of 15 and did not finish primary school in a regular manner, and who have been promoted to grade VII or have not received a promotion to grade VIII, vocational training classes shall be established. The vocational training class implements general education in accordance with the general education core curriculum adjusted to the needs and capabilities of the pupils. The vocational training programme shall be developed by the teacher conducting classes intended to achieve selected learning outcomes determined for

a given profession in the vocational education core curriculum²¹ and in the core curricula for education in the professions of sectoral VET schools²².

Pursuant to § 6 (4) of the Regulation of the Minister of National Education of 3 April 2019 *on framework teaching plans for public schools* (Dziennik Ustaw [Polish Journal of Laws] of 2019, item 639, as amended), the period of education in a first-stage sectoral VET school at a juvenile detention centre or shelter for minors may be shortened to two years.

65. Vocational education at first-stage sectoral VET schools operating in juvenile detention centres and juvenile shelters is conducted in accordance with the Regulation of the Minister of National Education of 13 March 2017 *on the classification of vocational education professions* (Dziennik Ustaw [Polish Journal of Laws] of 2017, item 622, as amended) and the Regulation of the Minister of National Education of 15 February 2019 *on general objectives and tasks of education in the professions of sectoral VET schools and classification of sectoral VET school professions* (Dziennik Ustaw [Polish Journal of Laws] of 2019, item 316, as amended).

Juvenile detention centres and juvenile shelters educate the minors in the following professions:

name of profession, where a given qualification is distinguished	name of qualification	designation of qualification in the professions defined in the classification of vocational education professions	designation of qualification in the professions defined in the classification of sectoral VET school professions	numerical symbol of the profession
carpenter	manufacturing carpentry products	AU.15.	---	752205
	manufacturing products from wood and similar-to-wood materials	---	DRM.04.	
locksmith	manufacture and repair of machinery, equipment, and tool components	MG.20.	MEC.08.	722204
bricklayer-plasterer	performance of masonry and plaster works	BD.14.	BUD.12.	711204
cook	preparation of dishes and beverages	TG.07.	---	512001
	preparation and serving courses	---	HGT.02.	
hairdresser	performing of hairdressing treatment	AU.21.	---	514101
	performing of hairdressing service	---	FRK.01.	
tailor	design and manufacture of clothing items	AU.14.	MOD.03.	753105
blacksmith	manufacture and repair of blacksmith products	MG.21.	MEC.02.	722101

²¹ Regulation of the Minister of National Education of 31 March 2017 *on the vocational education core curriculum* (Dziennik Ustaw [Polish Journal of Laws] of 2017, item 860, as amended) – in force since 1 September 2017.

²² Regulation of the Minister of National Education of 16 May 2019 *on the core curricula of education in professions of sectoral VET schools and on additional vocational skills in the scope of selected professions of sectoral VET schools* (Dziennik Ustaw [Polish Journal of Laws] of 2019, item 991, as amended) – in force since 1 September 2019.

bookbinder	bookbinding process implementation	AU.16.	---	732301
building and finishing works assembler in construction industry	performance of assembly, coverings and finishing works	BD.04.	BUD.04.	712905

66. On the basis of the Regulation of the Minister of National Education of 11 January 2012 *on further education in out-of-school forms* (Dziennik Ustaw [*Polish Journal of Laws*] of 2014, item 622, as amended) and the Regulation of the Minister of National Education of 18 August 2017 *on further education in out-of-school forms* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 1632), and – since 1 September 2019 – on the basis of the Regulation of the Minister of National Education of 19 March 2019 *on further education in out-of-school forms* (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 652), at juvenile detention centres and shelters for minors teaching can be conducted as part of qualification vocational courses.

A popular form of gaining additional professional skills by wards of juvenile detention centres are courses and trainings in the following scope: forklift operating, cash register handling, welder's course, driving licence course.

67. The Minister of Justice recommends a model of vocational education that envisages gaining qualifications and professional skills in course form. Such forms of education provide a possibility of flexible improvement of professional qualifications and general competences adjusted to the needs and capabilities of juvenile detention centre wards.

The above solutions create an opportunity to adapt the period of education to individual needs of the wards of juvenile detention centres and shelters remedy educational deficits by individualising the mode of teaching and educational activities and pedagogical support as part of work with pupils with special educational needs.

68. In the process of education and upbringing, the facilities have a wide range of offers in the field of development of cultural and social competences, as well as pro-health, preventive, and sports and recreational competences. In order to achieve better results of care and upbringing work, juvenile detention centres and shelters establish contact and cooperate with the family of the minor, while respecting the national, cultural and religious identity of their wards.

Facilities supplement their educational offers by including wards in therapeutic programmes, engage them in volunteer activities, and animate their free time in cooperation with the local community, as well as enable development of interests and abilities of the minors within the institutions.

Implementation of the learning duty in school for adults

69. On the basis of Regulation of the Minister of National Education of 8 December 2017 *on instances where public or non-public schools for adults can admit a person who is 16 or 15 years of age, and instances where a person who graduated from an eight-year primary school may carry out their learning duty by attending a qualifying vocational course* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 1562, as amended):

- public or non-public primary schools for adults can admit a person who reached the age of 16 at the latest on the day of commencement of classes, if this person is behind

in the education cycle and is not likely to graduate from primary school for children and youth,

- public or non-public high schools for adults can admit a person who reached the age of 16 at the latest on the day of commencement of classes, if this person is behind in the education cycle due to their life situation or health condition that prevents or impedes them from starting or continuing education at a general upper secondary school for youth.

In 2017/2018 - 2019/2020, a general upper secondary school for adults could admit a person who attended a public or non-public upper secondary school or a first-stage sectoral VET school for pupils who graduated from lower secondary school.

70. Public or non-public general upper-secondary school for adults can admit a person who graduated from a first-stage sectoral VET school and who reached the age of 16 at the latest on the date of commencement of classes.
71. A public or non-public school for adults can admit a person who reached the age of 15 if the person is in prison or jail.

A person who graduated from an eight-year primary school and:

- 1) is behind in the education cycle due to their life situation or health condition that prevents or impedes them from starting or continuing education at a secondary school for youth, or that prevents or impedes the, from pursuing practice at the workplace in accordance with the provisions on on-the-job training and remuneration of youth; or
 - 2) remains in prison, jail, juvenile detention centre, or shelter for minors
- may fulfil the learning duty by attending a qualification vocational course.
72. Pursuant to Article 12 (4) of the Act of 20 April 2004 *on the Promotion of Employment and Labour Market Institutions* (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1409), a public or non-public school for adults can admit a participant of a Voluntary Labour Corps, who reached the age of 15 at the latest on the date of commencement of classes, or who is behind on their education cycle and is not likely to graduate from primary school for children and youth, or has psychological and/or physical predispositions or a difficult life situation that impede his/her ability to learn at a school.

II.3. Right to education

II.3.1. Pre-school education

73. Children aged 6 shall undergo one-year pre-school preparatory education at a nursery school, preschool class at a primary school, or in another form of pre-school education. This obligation starts at the beginning of the school year in the calendar year in which the child reaches the age of 6. In the case of a child that has been issued a decision on the need for special education, this obligation shall commence at the beginning of the school year preceding the school year in which the child starts obligatory education.

Ensuring conditions to meet the obligation to complete the one-year pre-school preparatory education shall be the task of the commune [gmina].

74. Parents of a child subject to compulsory one-year pre-school preparatory education shall:
 - 1) carry out any acts necessary to register the child in a nursery school, preschool class at a primary school or another preschool setting;
 - 2) ensure that the child attends classes regularly;

- 3) inform, by 30 September each year, the headmaster of a primary school, catchment area of which includes the child's place of residence, that the child fulfils this obligation by attending a nursery school abroad, including on the basis of international contracts or agreements on direct cooperation concluded by schools, local government units, and government administration bodies, or within education programmes of the European Union, or by attending a nursery school with a diplomatic mission of another country in Poland;
- 4) provide the child with conditions enabling implementation of the core curriculum of pre-school education - in the case of a child who fulfils the obligation outside a nursery school, preschool class at a primary school, or other preschool setting, on the basis of a permit issued by the headmaster of a public or non-public nursery school or primary school to which the child was admitted.

Controlling the fulfilment of the abovementioned obligation shall be the task of the headmaster of the primary school catchment area of which encompasses the child's place of residence.

75. A public nursery school operated by a local government unit shall as well as a public nursery school operated by legal person other than local government unit, and by natural person:
 - 1) implement preschool education programmes taking into account the core curriculum of preschool education;
 - 2) ensure free teaching, upbringing, and care within the period determined by the operating authority, not shorter than 5 hours a day (applies only to the public nursery school operated by local government unit);
 - 3) recruit children on the basis of the principle of universal availability;
 - 4) employ teachers who have qualifications defined in separate regulations.
76. In public nursery schools and public other forms of preschool education, operated by legal persons other than local government units, and natural persons, the time of free teaching, upbringing, and care determined by the person operating the establishment may not be shorter than the time of free teaching, upbringing, and care determined by the commune council for public nursery schools and other forms of preschool education operated by the commune.
77. Public another form of preschool education shall ensure free teaching, upbringing, and care within the period determined by the operating authority, not shorter however, than the period determined by law²³.
78. The minister responsible for education and upbringing shall define, by way of a regulation, the types of other forms of preschool education, the conditions for creating and organising them, the manner of their operation, and the minimum daily period of education, upbringing and care provided by thereby, taking into account, in particular, the need to adapt forms of preschool education to the local situation and needs, as well as the possibility of conducting classes only on certain days of the week.

Fees for using preschool education

79. Fees for using preschool education - shall be understood as charges for teaching, upbringing, and care at a preschool education institution, conducted for a period exceeding

²³ Regulation of the Minister of National Education of 28 August 2017 *on the types of other forms of preschool education, conditions for their establishment and organisation as well as their methods of operation* (Dziennik Ustaw [Polish Journal of Laws] of 2020, item 1520).

the time of free teaching, upbringing, and care determined in accordance with the provisions of the UPO.

According to Article 52 of the UFZO:

1. The commune council shall determine the amount of fees for using preschool education by pupils covered by preschool education until the end of the school year in the calendar year in which they turn 6 years of age, in the following institutions operated by the commune:

1) public nursery school and preschool class in a public primary school, for a period exceeding the period of free teaching, upbringing, and care (at least 5 hours a day);

2) public other preschool forms of preschool education for a period exceeding the period of free teaching, upbringing, and care determined for public preschools on the basis of Article 13 (2) of the UPO.

2. The commune council may determine the terms and conditions of a partial or full exemption of the abovementioned fees.

3. The fee may not be higher than PLN 1 for each commenced hour of the child's actual stay at a nursery school, preschool class in a primary school, and other preschool form of education.

80. Since the 2017/2018 school year, all children taking advantage of preschool education receive free foreign language courses.

81. Preschool education shall be conducted in accordance with the core curriculum of preschool education, which states that the aim of preschool education shall be to support the overall development of the child. This support shall be provided throughout the process of care, upbringing, and teaching – learning, which enables the child to discover their own abilities, the meaning of action, and gather experiences on the way leading to truth, welfare, and beauty. As a result of such support, the child becomes mature enough to start education at stage I.

82. Preschool education covers children from the beginning of the school year in the calendar year in which they reached the age of 3, until the end of the school year in the calendar year in which they reach the age of 7.

In the case of children who were issued a decision on the need to receive special education, preschool education may cover a child of more than 7 years of age, however not longer than until the end of the school year in the calendar year in which the child reaches the age of 9. In particularly justified cases, preschool education may also cover a child aged 2.5.

83. Children aged 3-5 shall have the right to use preschool education. The child shall acquire this right at the beginning of the school year in the calendar year in which they reach the age of 3.

84. Preschool education is implemented at nursery schools, preschool classes in primary schools, and in other forms of preschool education.

Ensuring conditions for exercising the right to use preschool education shall be the task of the commune.

85. If the number of children to whom the commune is obliged to ensure the possibility of using preschool education, residing within a given commune, reported during the recruitment procedure to a public nursery school, preschool class in a public primary school, public other form of preschool education, non-public nursery school, preschool

class in a non-public primary school, or other non-public form of preschool education exceeds the number of places in that nursery school, preschool class or another form of preschool education, the leader of the nursery school or leader of the primary school shall release information that the child was not admitted to the nursery school, preschool class at a primary school, or another form of preschool education to the commune head (mayor, city president). In this case, the head of the commune (mayor, city president) shall indicate in writing, not later than before the commencement of the supplementary proceedings, other public nursery school, a preschool class in a public primary school, or another public form of preschool education, or non-public nursery school, preschool class in a non-public primary school, or another non-public form of preschool education that may admit the child. The work hours of the other public nursery school, preschool class in a public primary school, other public form of preschool education, non-public nursery school, preschool class in a non-public primary school, other non-public form of preschool education indicated by the commune head (mayor, city president) should be similar to the work hours of, accordingly, the nursery school, preschool class in a primary school, or other form of preschool education admittance to which was applied for by the child's parents.

In such a case, the head of the commune (mayor, city president) shall, if possible, indicate, accordingly a public nursery school, preschool class in a public primary school, other public form of preschool education, non-public nursery school, preschool class in a non-public primary school, other non-public form of preschool education that are closest to the preschool, preschool class in a primary school, other form of preschool education admittance to which was applied for by the child's parents (Article 31 of the UPO).

86. The commune council shall determine a network of public nursery schools and preschool classes in primary schools operated by the commune. The resolution of the commune council shall be announced in the province official journal.

In cases justified by demographic and geographic conditions the commune council may supplement the network of public nursery schools and preschool classes in primary schools with other preschool settings. Other forms of preschool education shall be organised for children at their place of residence or another location that is as close to their place of residence as possible.

A network of public nursery schools and preschool classes in public primary schools, together with public nursery schools, preschool classes in public primary schools, and other public forms of preschool education operated by legal persons other than local government units or by natural persons, other public form of preschool education operated by the commune, non-public nursery schools, preschool classes in non-public primary schools, and other non-public forms of preschool education, should provide children residing in the commune with the possibility of using pre-school education (Article 32 of the UPO).

87. In the school year 2019/2020 (according to the SIO data as at 30 September 2019), there were 12,931 **nursery schools** (including 4,156 in rural areas). In the school year 2018/2019 there 12,535 (including 4,056 in rural areas). In the school year 2017/2018 - 12,146 (including 3,944 in rural areas).

In the school year 2019/2020 14,109 **preschool classes** were organised in 7,808 primary schools (including in 5,847 schools in rural areas – were 10,099 preschool classes operated). In the school year 2018/2019 there were 13,697 preschool classes organised in 7,924 primary schools (including in 9,780 classes in rural areas). In the school year 2017/2018 there were 13,433 of them in 8,030 primary schools.

In the school year 2019/2020 there were 1,613 public and non-public **preschool education units and preschool education centres**; compared to the previous year their number decreased by 85.

According to the above data, there is a small but constant decrease in the number of other forms of preschool education. On the other hand, nursery schools become the most popular place for providing preschool education. According to earlier predictions, the popularity of preschool classes in primary schools increased.

88. In the 2017/2018 school year, **a total** of 1,361.2 thousand **children** were **covered by preschool education**, in the school year 2018/2019 - 1,392.9 thousand children, and in the school year 2019/2020 this number increased to 1,413.6 thousand. It is a consequence of a systematic increase of parents' interest in this form of education. The increase in the number of children covered by preschool education resulted in the ratio of promotion of preschool education of children aged 3-5 increased from 84.7% in 2017 to 87.4% in 2018 and to 89.3% in 2019. It should be expected that this indicator will continue to grow due to demographic tendencies – the population will be reduced in subsequent years and new preschool education units will be opened. This will allow to achieve the planned rate of dissemination of pre-school education of children aged 3-5 of 90% by 2020.
89. Preschool education in 2018 covered 35,678 children who were issued decisions on the need for special education (as at 30 September 2018 according to the SIO data), of which:
 - 14,005 children on the autism spectrum, including Asperger syndrome,
 - 8,909 children with motor disabilities, including aphasia,
 - 6,248 children with multiple disabilities,
 - 2,431 children with mild intellectual disabilities,
 - 1,410 children with moderate or severe intellectual disabilities,
 - 1,361 children with hearing impairments,
 - 953 children with vision impairments,
 - 333 deaf children,
 - 28 blind children.
90. Preschool education in 2019 covered 35,422 children who were issued decisions on the need for special education (as at 30 September 2019 according to the SIO data), of which:
 - 14,274 children on the autism spectrum, including Asperger syndrome,
 - 9,379 children with motor disabilities, including aphasia,
 - 6,231 children with multiple disabilities,
 - 2,119 were issued to children with mild intellectual disabilities,
 - 990 children with moderate intellectual disabilities,
 - 74 children with severe intellectual disabilities,
 - 1,244 children with hearing impairments,
 - 797 children with vision impairments,
 - 289 deaf children,
 - 25 blind children.

II.3.2. Primary and secondary education

Primary education

91. Obligatory education for a child shall begin with the beginning of the school year in the calendar year the child reaches the age of 7 and shall end until graduation from primary school, however, no longer than until the time the child reaches the age of 18. On request

of the parents, education in primary school may also be started by a child who in a given calendar year reached the age of 6. In the case of children who were issued a decision on the need to receive special education, obligatory education may be postponed for no more than until the end of the school year in the calendar year in which the child reaches the age of 9.

Obligatory education is pursued by way of attending eight years of public or non-public primary school. Classes are held in a full-time system (Article 35, Article 36, Article 38 of the UPO).

92. A public primary school shall:

- 1) provide free education in the scope of framework curricula;
- 2) recruit pupils on the basis of the principle of universal availability;
- 3) employ teachers who have qualifications defined in separate regulations;
- 4) implement:
 - a) curricula taking into account the core curriculum of general education,
 - b) framework teaching plan;
- 5) fulfil the rules for evaluating, classifying, and promoting pupils and conducting the exams referred to in chapters 3a and 3b of the USO.

A non-public school which is not an art school is a school which:

- 1) implements syllabuses taking into account the core curriculum of general education, and in the case of a school providing vocational education - also the core curriculum of vocational education professions;
- 2) carries out mandatory educational classes in a period not shorter and no less than the total time of individual classes defined in the framework teaching plan for a given type of school;
- 3) applies the classification and promotion of students and conducting exams referred to in chapters 3a and 3b of the USO;
- 4) keeps documentation of the course of education determined for public schools;
- 5) in the case of a school providing vocational education - educates in professions defined in the classification of the sectoral TVET education professions;
- 6) employs teachers of mandatory subjects, having qualifications defined for public school teachers;
- 7) applies the organisation of a school year established for public schools.

Public schools and non-public schools enable obtaining school reports, certificates, statements, annexes or state diplomas.

93. In order to ensure the proper implementation of care tasks, in particular supporting the proper development of pupils, the school may organise a **canteen**. The conditions for using the school canteen, including the amount of fees for meals, are determined by the school headmaster in consultation with the authority operating the school.

The authority operating the school may exempt parents or an adult student from all or part of the abovementioned fees if the family is in a particularly difficult financial situation or in particularly justified cases of random events (Article 106 of the UPO) – also applies to secondary schools.

94. In order to ensure the proper implementation of care tasks, in particular supporting the proper development of students, the school may organise **boarding houses** for pupils pursuing compulsory education outside their place of permanent residence. The conditions

for using the boarding house, including the amount of fees for accommodation and meals, are determined by the school leader in consultation with the authority operating the school.

The authority operating the school may exempt parents or an adult student from all or part of the fees for accommodation in a boarding house if the family is in a particularly difficult financial situation or in particularly justified cases of random events (Article 107 of the UPO) – also applies to secondary schools.

95. A **parents' council** appointed at the school or facility may gather funds from voluntary contributions made by parents or from other sources. Funds from the parents' council may also be spent on the statutory activities of the school. The rules for spending these funds are set out in the regulations adopted by the parents' council (Article 84 of the UPO) – also applies to secondary schools.

Secondary education

96. A public secondary school is a school which:

- 1) provides free education in the scope of framework teaching plans;
- 2) recruits pupils on the basis of the principle of universal availability;
- 3) employs teachers who have qualifications defined in separate regulations;
- 4) implements:
 - a) curricula taking into account the core curriculum of general education, and in the case of a school providing vocational education - also the core curriculum of sectoral VET education professions or the core curriculum of fine arts professions education,
 - b) framework teaching plan;
- 5) fulfils the rules for evaluating, classifying, and promoting students and conducting the exams referred to in chapters 3a and 3b of the USO.

Public schools and non-public schools enable obtaining school reports, certificates, statements, annexes or state diplomas.

97. Public and non-public upper secondary schools are divided into the following types:
- a) four-year general upper secondary school (czteroletnie liceum ogólnokształcące),
 - b) five-year technical upper secondary school (pięcioletnie technikum),
 - c) three-year first-stage sectoral VET school (trzyletnia szkoła branżowa I stopnia),
 - d) three-year special school preparing for employment (trzyletnia szkoła specjalna przysposabiająca do pracy),
 - e) two-year second-stage sectoral VET school (dwuletnia szkoła branżowa II stopnia),
 - f) post-secondary school (szkoła policealna) for people with secondary education or sectoral secondary education, lasting no more than 2.5 years.

Special school preparing for employment shall be a special school intended solely for pupils with moderate or severe intellectual disability and for pupils with multiple disabilities.

General upper secondary school, technical upper secondary school, first-stage sectoral VET school, school preparing for employment and art schools provide full-time education, and the second-stage sectoral VET schools and post-secondary schools may provide full-time, 4-day-a-week, or extramural education.

A school for adults shall provide education in a 4-day-a-week or extramural mode.

98. Education shall be compulsory until one reaches 18 years of age (Article 35 of the UPO).

After graduating from primary school, the learning duty is fulfilled by attending a public or non-public secondary school or attending practice at a workplace. A pupil who graduated from a secondary school before reaching the age of 18 may also fulfil the learning duty by attending a higher education institution or qualifying vocational courses (Article 36 of the UPO).

Minimum age to enter the labour market

99. In accordance with the Act of 26 June 1974 - *the Labour Code* (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1320), any person above the age of 18 may be employed. Under the terms and conditions set out in section 9 of the Act of 26 June 1974 - *the Labour Code*, an employee may also be a person who is under 18 years of age.

Article 190

§ 1. A minor within the meaning of the Code shall be a person over 15 and under 18 years of age.

§ 2. Employment of a person under the age of 15 shall be prohibited, subject to Article 191 § 2¹ to 2³.

Article 191

§ 1. Employing minors shall only be allowed if said minors:

- 1) have completed at least an eight-year primary school;
- 2) presented a medical certificate stating that work of a given type does not pose a threat to their health.

§ 2. A minor without professional qualifications may be employed solely for the purpose of vocational training.

§ 2¹. A person who graduated from an eight-year primary school and is under the age of 15 may be employed on terms set out for minors, in the calendar year in which he/she reaches the age of 15.

§ 2². A person who graduated from an eight-year primary school and is under the age of 15, except for the person referred to in § 2¹, may be employed on terms set out for minors for the purpose of vocational training in the form of practical learning of a profession.

§ 2³. A person who did not graduate from an eight-year primary school and is under the age of 15 may be employed on terms set out for minors for the purpose of vocational training in the form of training for a specific job.

§ 2⁴. It is permitted to conclude an employment contract for the purpose of vocational training with the person referred to in § 2² and § 2³ if a legal representative or legal guardian of that person gave their consent and a positive opinion has been obtained from a psychological and pedagogical counselling centre.

§ 2⁵. In the case of the person referred to in § 2³, it is also required to obtain permission of the leader of the eight-year primary school, catchment area of which encompasses that person's place of residence, to complete obligatory education outside the school.

§ 2⁶. It is permitted to conclude an employment contract for the purpose of vocational training in the form of training for a specific job with a person who reached the age of 15 but did not graduate from an eight-year primary school, at the request of their legal representative or legal guardian, where:

1) that person has been admitted to a vocational preparatory class in an eight-year primary school or

2) that person obtained a permission to fulfil obligatory education outside school from the leader of the eight-year primary school, catchment area of which encompasses that person's place of residence and obtained a positive opinion from a psychological and pedagogical counselling centre.

§ 2⁷. It is permitted to conclude an employment contract for the purpose of vocational training in the form of training for a specific job with a person who reached the age of 15 but did not graduate from an eight-year primary school and fulfils obligatory education outside school, provided that they completed vocational training in the form training to perform a specific job. The provision of § 2⁶ (2) shall apply accordingly.

§ 3. The Council of Ministers shall define, by way of a regulation, the terms and conditions of on the job training, as well as the terms and conditions of remuneration of minors in this period.

Article 191¹

A person who reached the age of 18 while attending an eight-year primary school may be employed on terms set out for minors in the calendar year in which he/she graduated from that school.

Article 197

§ 1. A minor employee shall undergo upskilling until the age of 18.

§ 2. In particular, a minor employee shall:

1) undergo upskilling within the scope of an eight-year primary school, if he/she had not graduated from such a school;

2) undergo upskilling within the scope of a secondary school or out of school forms.

Article 198

The employer shall release a minor from work for the time needed to take part in training classes in connection with upskilling.

Article 199

If a minor has not completed vocational training prior to reaching 18 years of age, the obligation of upskilling, in accordance with the provisions of Article 197, may be extended until the completion of vocational training.

II.3.3. Higher education

100. The higher education system in Poland ensures equal access to education at all stages thereof.

Articles 32 – 33 of the Constitution state that all persons shall be equal before the law and shall have the right to equal treatment by public authorities. No one shall be discriminated against in political, social or economic life for any reason whatsoever. Men and women shall have equal rights in family, political, social and economic life, including equal right to education.

101. Equal treatment rules shall apply to all students, including foreigners.

All candidates for tertiary studies shall be subject to the recruitment procedure specified by a given higher education institution. Higher education institutions shall independently

define the conditions, procedure, and date of commencement and completion of the recruitment process for tertiary studies and the manner in which it shall be conducted. Nevertheless, the UPSWiN contains a provision that foreigners may start and continue their studies on the basis of an administrative decision of the rector, i.e. without the recruitment criteria set out in the resolution of the senate of the higher education institution.

102. Pursuant to the provisions of the UPSWiN, a public higher education institution may charge fees for educational services. The list of these services is included in Article 79 of the UPSWiN. These fees should be the same for all students, including foreigners. Article 324 (2) of the UPSWiN lists the categories of persons from whom fees for education at full-time studies in the Polish language shall not be collected under law.
103. The principle of equal treatment, inter alia, in terms of access and conditions of taking advantage of primary/secondary and tertiary education, as well as vocational education, including upskilling, professional development, vocational retraining, and apprenticeships, shall be guaranteed by the provisions of the Act of 3 December 2010 *on the implementation of certain provisions of the European Union in terms of equal treatment*.
104. Disabled persons may obtain support under programmes financed from the National Rehabilitation Fund for Disabled Persons (Państwowy Fundusz Rehabilitacji Osób Niepełnosprawnych). One of them is the “Active Local Government” (Aktywny samorząd) programme.

The main purpose of the programme is to eliminate or reduce barriers limiting the participation of beneficiaries of the programme in social and professional life, and access to education. A detailed objective of the programme is, inter alia, to improve the chances of beneficiaries of the programme to compete for employment on an open labour market, by increasing qualifications.

Module II of the programme concerns subsidising or reimbursement of the costs of obtaining higher education. The following costs may be financed, from the funds of the National Fund for Rehabilitation of Disabled Persons, under the programme:

- 1) education fee (tuition);
- 2) additional allowance to cover costs of education;
- 3) allowance for the payment of a fee for conducting doctoral research - in case of persons who commenced doctoral research, but do not participate in doctoral studies.

The conditions for participation of a disabled person in the Module II programme shall be as follows:

- 1) severe or moderate disability;
- 2) education at a higher education institution or a post-secondary school or tertiary vocational school (kolegium) or doctoral research commenced outside of doctoral studies.

II.3.4. Adult education and lifelong learning

Vocational education

105. On 22 November 2018 an Act was passed *on amending the Act - Education Law, Act on the System of Education, and Certain Other Acts* (Ustawa o zmianie ustawy – Prawo

oświatowe, ustawy o systemie oświaty oraz niektórych innych ustaw; Dziennik Ustaw [Polish Journal of Laws] of 2018, item 2245, as amended)

Purpose of the changes:

- reconstruction of the prestige of vocational education,
- adapting the new sectoral VET system to the needs of modern economy and individual industries – a “tailor-made” system,
- increasing the impact of employers on the functioning of vocational education,
- preparation of programme, organisational, and legal changes – aimed at improving the quality and efficiency of vocational education,
- promoting sectoral VET education among pupils and their parents.

Most solutions are instruments aimed at linking education to the labour market.

Actions preceding the adoption of the Act, implemented since the 2017/2018 school year:

- 1) the structure of education has been made more flexible, and access to further education has been ensured, first-stage and second-stage sectoral VET schools have been introduced, ensuring the efficiency of the education process and the possibility of taking the maturity exam;
- 2) a model of practical training was made more flexible by enabling schools to increase the number of hours allocated for its implementation
(in a technical upper secondary school or a post-secondary school - at least 50% of the hours of vocational education a week has been devoted to practical training, and in a first-stage sectoral VET school - at least 60% of those hours);
- 3) mandatory career counselling classes were introduced in order to increase the accuracy of decisions related to the selection of a profession
(minimum 10 hours a year in grades VII and VIII of primary school and minimum 10 hours in the education cycle in secondary schools – first-stage sectoral VET school, five-year technical upper secondary school, four-year general upper secondary school);
- 4) a pilot division of educational subsidy was carried out, taking into account the cost of education in groups of professions;
- 5) agreements or letters of intent of the MEN with representatives of industries (rail transport, road transport, air transport, construction, and power supply) are successfully signed;
- 6) Regional Education Authorities have appointed vocational education coordinators whose task is to support employers interested in establishing cooperation with schools;
- 7) over 1,000 employers participated in the preparation of programme changes (including the development of new core curricula of education in sectoral vocational professions that entered into force on 1 September 2019);
- 8) on the initiative of the MEN, the Central Statistical Office conducted a pilot programme of a new tool for monitoring labour market demand for graduates of schools providing vocational education;

- 9) an auxiliary body was established with the minister responsible for education and upbringing – the Council of Vocational School Leaders, which took part in the preparation of changes in vocational education and consulting them in the school environment on an ongoing basis.

Particularly important changes from the perspective of employers, including craftsmen:

- permanent participation of employers in determining the demand of the labour market for graduates of schools providing education in sectoral vocational professions (annual prognosis of the MEN),
- increasing the participation of employers in the preparation of programme changes in the field of vocational education (core curricula of education in sectoral vocational professions adjusted to the needs of the economy in individual sectors),
- enabling pupils for acquiring additional professional skills (e.g. of barista in the waiter profession, of programming in the Python language in the professions of IT sector, of running a vineyard/growing grapevines), and to prepare to acquire market qualifications which function in the Integrated System of Qualifications which enable flexible adaptation of education to the changes in professions on the job market,
- ensuring the possibility of preparing pupils for acquiring additional professional certificates necessary to perform a given profession (e.g. preparation for acquiring certificate entitling to the operation of electro-energy equipment, installations and networks in the professions assigned to the electric and power-related industries, preparation for obtaining a category C driving licence in the road transport sector, preparation for obtaining a train driver's licence in the railway transport sector),
- direct impact of employers on vocational education (contract or agreement between the school and the employer is the condition that education is started in a given profession),
- the condition for the introduction of education in the new profession shall also be to obtain the opinion of the province labour market council, issued for 5 years, on the validity of education in this profession in accordance with the needs of the labour market (not required in the case of education of minor workers and education in auxiliary professions),
- dissemination of practical education under real working conditions – introduction of internship contracts with pupils of technical upper secondary schools and sectoral first-stage VET schools who are not minors (employers can include benefits for trainees in tax deductibles),
- increasing the attractiveness of education in craftsmanship professions – increasing the minimum percentage rates of remunerations of minor employees for which employers will be entitled to reimbursement (from 4%, 5%, 6% of the average monthly salary in subsequent years of education to 5%, 6% and 7%, respectively),
- annual prognosis by the MEN of the demand for employees in vocational education professions - by 31 March 2019, next years - by 1 February,
- the prognosis shall be used by the province labour market councils when issuing opinions on the intention to launch education in a new profession by school,
- increasing the level of subsidies for employers for costs of educating minor workers in the so-called “deficit” professions resulting from the prognosis of the MEN (from PLN 8,081.00 to PLN 10,000.00),

- differentiation of financing of vocational education, taking into account the actual demand for a given profession (defined in the annual prognosis) and professions of particular importance for culture and national heritage,
- the first division of the educational subsidy based on the MEN prognosis - for 2020,
- introduction of mandatory sectoral training for vocational education teachers at workplaces (40 hours for 3 years) – does not apply to teachers working in a given profession,
- introduction of tax preferences (exemptions) for employers (natural persons and legal persons) transferring donations to public schools providing vocational education,
- introduction of the obligation to take a vocational exam (and a journeyman exam - for pupils-minor employees learning a craft at the employer who is a craftsman) – constituting a condition for obtaining promotion to the next class and obtaining a graduation certificate.

106. The structure of sectoral education (2019/2020) includes:

- five-year technical upper secondary school;
- three-year first-stage sectoral VET school;
- two-year second-stage sectoral VET school;
- post-secondary school.

Introduction of the first-stage sectoral VET school in place of the basic vocational school took place on 1 September 2017.

Since 1 September 2019, the total number of hours allocated for vocational education in five-year technical upper secondary schools was increased to 56 hours/week in the five-year education period.

107. A special analysis was conducted on the possibility of strengthening the impact of companies and enterprise associations on the functioning of vocational education, e.g. on the creation of a vocational education offer, activation of education in professions, implementation by pupils of practical vocational education under real working conditions, training of vocational education teachers.

It was assumed, by way of an act, that the education system in Poland in the field of vocational education is supported by employers, employer organisations, economic self-governments, or other economic organisations, associations, or professional self-governments, sectoral competence boards and the Competence Programme Board.

108. Starting from the 2019/2020 school year, all activities of the school providing vocational education are focused on ensuring that graduates have full professional qualifications confirmed by relevant documents issued as a result of submitted exams. In addition, a graduate should be prepared to obtain professional qualifications or market qualifications necessary for the future employer, specified in the Integrated Qualifications System (Zintegrowany System Kwalifikacji)²⁴ or additional professional skills related to the profession taught.

²⁴ Act of 22 December 2015 on *Integrated Qualifications System* (Dziennik Ustaw [Polish Journal of Laws] of 2020, item 226).

Schools which launch courses in a given profession are therefore obliged to establish cooperation with an employer for this profession or industry under a contract or agreement.

Local government units receive an increased education subsidy for schools teaching professions with higher demand on the labour market, indicated in the prognosis of demand for employees in vocational education professions. This prognosis is determined by the minister responsible for education and upbringing by way of announcement and takes into account data of public statistics, social insurance, the SIO, and results of available research and labour market analyses. In addition, a new criterion is introduced for the division of subsidies consisting in the diversification of amounts determined for students covered by vocational education in vocational education professions of particular importance for culture and national heritage. The list of professions of particular importance for culture and national heritage shall be determined by the minister responsible for education and upbringing in consultation with the minister responsible for culture and national heritage, also by way of announcement. Thanks to such mechanisms, in first-stage and second-stage sectoral schools and technical upper secondary schools includes education in the professions needed on the labour market is provided.

109. A minor employee, in most cases, is at the same time a pupil learning at a first-stage sectoral VET school. It will be necessary to start cooperation between the employer and the school in which said minor employee pursues theoretical vocational education and general education. Both of these entities shall be responsible for educating a pupil – minor employee who fulfils their learning duty in this form. Employers who educate minor employees in professions where there is an increased demand for employees will receive higher subsidies to the costs of that education.

In addition, pupils attending first-degree sectoral VET school who are not minor employees and technical upper secondary schools may, on the basis of a contract with an employer, undergo student internship. Participation in pupil internships enables the pupils to learn a profession under real working conditions, get to know the workplace, and get acquainted with specific positions. Employers on the other hand, have an opportunity to learn about a potential future employee and prepare him/her for work. The employers shall include costs of cash benefits that the pupil will receive during the internship in their tax deductibles.

Pupils who choose education at a post-secondary school learn trades that are, as a rule, assigned to the 5th level of the Polish Qualifications Framework (Polska Rama Kwalifikacji).

110. In order for a pupil to achieve success, it is necessary to prepare a vocational teacher who systematically improves his/her own skills. Therefore, obligatory training at a workplace is introduced. As a result of industry training, teachers will regularly improve their skills and competences, broaden their knowledge on new technologies and the functioning of enterprises in a given industry sector. In this way, qualifications of vocational education teachers will be regularly improved, which will translate into the quality of education they provide.
111. Since the school year 2019/2020, changes in sectoral education also focus on improving and increasing the effectiveness of vocational exams. These exams should, on the one hand, verify the quality of the education process, and on the other hand, constitute a pass to success on the labour market. The effectiveness of vocational education should be measured by the number of graduates who obtain professional qualifications. In order to obtain a relevant document confirming professional qualifications, it is necessary not only

to adequate preparation of pupils, but also to take the exam which, so far, has not been obligatory. The obligation to take part in the vocational examination introduced in the proposed changes may contribute to strengthening actions taken by the school, aimed at ensuring high quality of education.

Continuing education (Lifelong learning)

112. Continuing education is organised and conducted in:

- 1) public and non-public schools for adults, second-stage sectoral VET schools and post-secondary schools;
- 2) out-of-school forms conducted by public and non-public further education institutions and vocational education centres, and public and non-public schools conducting vocational education (Article 117 (1) of the UPO).

Continuing education is conducted in the following out-of-school forms:

- 1) qualification vocational course;
- 2) vocational skills course;
- 3) general competences course;
- 4) theoretical training camps for minor employees;
- 5) course, other than those listed in points 1-3, enabling to obtain and complete vocational knowledge, skills and qualification (Article 117 (1a) of the UPO).

Qualification vocational courses may be conducted by:

- 1) public and non-public schools conducting vocational education schools, except for art schools – in the scope of professions they conduct training and in the scope of other professions from the sectors to which these professions are assigned to, the school conduct training;
- 2) public and non-public further education institutions and vocational education centres;
- 3) labour market institutions which lead education and training activities;
- 4) entities conducting educational activities that receive accreditation (Article 117 (2) of the UPO).

Skills vocational courses may be conducted by:

- 1) public and non-public schools conducting vocational education schools, except for art schools – in the scope of professions they conduct training and in the scope of other professions from the sectors to which these professions are assigned to, the school conduct training;
- 2) public and non-public further education institutions and vocational education centres (Article 117 (2a) of the UPO).

General competences courses and courses that enable to obtain and complete vocational knowledge, skills and qualifications may be conducted by public and non-public further education institutions and vocational education centres (Article 117 (2b) of the UPO).

Theoretical training camps for minor employees may be conducted by:

- 1) public and non-public schools conducting vocational education schools, except for art schools – in the scope of professions they conduct training and in the scope of other professions from the sectors to which these professions are assigned to, the school conduct training;
- 2) public and non-public vocational education centres (Article 117 (2c) of the UPO).

Further education may be conducted as full-time or extramural courses, and in out-of-school forms with the use of distance learning methods and techniques. A theoretical training camp for minor employees may be conducted only as a full-time course.

113. **Training for adults working in agriculture, rural residents, teachers, and agricultural advisers**, pursuant to the Act of 22 October 2004 *on Agricultural Consultancy Units* (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 721), are conducted, accordingly, by provincial Agricultural Consultancy Centres (Ośrodki Doradztwa Rolniczego - ODR) and the Agricultural Advisory Centre in Brwinów (Centrum Doradztwa Rolniczego - CDR). CDR conducts training for agricultural advisers, primarily in the area of advisory work methodology and tasks carried out by centres in the field of agricultural consultancy. In addition, CDR also conducts training courses for teachers working in agricultural schools in the field of sustainable development of rural areas.

Training for farmers and residents of rural areas is conducted by ODRs, based on Article 4.2 (1) of the Act of 22 October 2004 *on Agricultural Consultancy Units*, in particular in the scope of:

- 1) application of modern agrotechnics methods, breeding and agri-food processing;
- 2) solving technological and organisational and economic problems of agricultural holdings;
- 3) accountancy in agricultural holdings;
- 4) organic farming;
- 5) development of entrepreneurship in rural areas;
- 6) modernisation of the rural household;
- 7) applying for aid financed or co-financed from EU funds or funds of other domestic or foreign institutions;
- 8) modernisation of agricultural holdings, improvement of the quality of agricultural and food products and their processing, and strengthening of the position of farmers on the market;
- 9) agricultural holding management;
- 10) promotion of local and regional products.

In addition, training activities aimed at the development of knowledge and professional skills of farmers in the field of conducting business activity are carried out as part of sub-measure “Support for activities in the field of vocational education and acquiring skills of the Rural Development Programme for 2014-2020” (Wsparcie dla działań w zakresie kształcenia zawodowego i nabywania umiejętności Programu Rozwoju Obszarów Wiejskich), co-funded by the European Union. On the other hand, as part of the sub-measure “Support for training of advisors” (Wsparcie dla szkolenia doradców) to the same Programme, trainings/post-graduate studies are organised and conducted for persons professionally providing advice to farmers. The Contractor conducting the training in question shall be selected in accordance with the provisions of the Public Procurement Law (Prawo Zamówień Publicznych). The abovementioned training shall be conducted in a manner that guarantees equal access to it, without any discrimination, e.g. on grounds of sex or material status.

II.3.5. Quality of education and learning

General education

114. Creating high-quality education is based, inter alia, on developing and implementing new core curricula that meet the current social expectations and labour market needs. The requirements formulated in core curricula are aimed at developing pupils' key competencies using modern technologies and the design approach. General education creates a coherent whole, programme-wise, and constitutes a foundation of education enabling the acquisition of diverse professional qualifications, and then their improvement or modification, opening the lifelong learning process.

The core curriculum of general education defines mandatory sets of education goals and teaching content, including skills that the pupil should acquire after the end of a specific educational stage, which are included in syllabuses (Article 4 (24) of the UPO).

The provisions of the core curriculum of general education impose an obligation on the school to individualise the teaching process so that each pupil can achieve the effects of education indicated in the document.

A description of the manner in which educational objectives and teaching contents determined on the core curriculum are accomplished shall be included by a teacher in his/her own original syllabus which shall be presented to the school leader for approval (Article 3 (13b) and Article 22a of the USO). In the syllabus, the teacher may expand the scope of the teaching content laid out in the core curriculum. However, it must meet the condition for adapting the syllabus to the needs and capabilities of the pupils who will follow this programme.

Pedagogical supervision

115. Pedagogical supervision consists in:

- 1) observing, analysing and assessing the course of education and upbringing processes and the effects of didactic, upbringing, and care activities as well as other statutory activities of schools and facilities;
- 2) assessing the situation and conditions of didactic, upbringing, and care activities as well as other statutory activities of schools and facilities;
- 3) providing assistance to schools and facilities as well as teachers in the performance of their didactic, upbringing, and care tasks;
- 4) inspiring teachers to improve existing or implement new solutions in the education process, using innovative programme, organisational or methodological activities aimed at developing pupils' competencies.

In the scope referred to in the points 1 and 2, in particular the following shall be subject to supervision:

- 1) having by teachers the qualifications required to conduct the classes assigned to them;
- 2) implementation of core curriculum and framework teaching plans;
- 3) compliance with the rules for assessing, classifying and promoting students and conducting exams, as well as compliance with the provisions of law on the schooling obligation and the learning duty;
- 4) compliance with the statute of the school or facility;
- 5) compliance with the rights of the child and the rights of the pupil and dissemination of knowledge about these rights;
- 6) ensuring safe and hygienic conditions for education, upbringing, and care for pupils (Article 55 of the UPO).

116. The minister responsible for education and upbringing shall:

- 1) conduct pedagogical supervision over the established and operated by the minister:

- a) Polish schools,
 - b) nationwide public teacher development institutions,
 - c) public schools and facilities of an experimental nature,
 - d) nationwide public further education facilities,
 - e) schools and school complexes in Poland and at diplomatic missions, consulates, and military missions of the Republic of Poland that:
 - educate children of Polish citizens temporarily staying abroad in accordance with the general education core curriculum, or
 - enable students attending schools operating within education systems of other countries to complement education in the scope of primary school and general upper secondary school, in accordance with the programme framework for complementary education and teaching plans for Polish schools;
- 2) supervise and coordinate the performance of pedagogical supervision in the country, in particular, activities of regional education superintendents in this regard;
- 3) take actions aimed at ensuring efficiency and effectiveness of pedagogical supervision, in particular shall:
- a) develop and modify pedagogical supervision tools,
 - b) develop training programmes for persons performing tasks related to pedagogical supervision and organise such trainings,
 - c) analyse and prepare data on pedagogical supervision,
 - d) prepare annual information on the results of pedagogical supervision exercised by the regional education superintendents and announce it on the website of the office providing services thereto.
117. The Minister of Justice and subordinated authorities exercise pedagogical supervision over juvenile detention centres, shelters for minors and schools in these institutions (pursuant to Article 60 (4) of the UPO).
118. Pursuant to § 4 of the Regulation of the Minister of National Education of 25 August 2017 *on pedagogical supervision* (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1551), pedagogical supervision is exercised taking into account:
- 1) cooperation of the bodies exercising pedagogical supervision with school or facility authorities; headmasters of schools and facilities, and teachers;
 - 2) creating conditions conducive to the development of schools and facilities;
 - 3) obtaining information ensuring objective and full assessment of didactic, upbringing, and care activities and other statutory activities of a school or facility.
- Forms of supervision are: evaluation, control, support, monitoring.
119. Pursuant to Article 60 (3.1) of the UPO, the minister responsible for education and upbringing has determined the following basic directions of implementation of the state education policy:
- I. in the 2017/2018 school year:
- 1) Implementation of a new general education core curriculum.
 - 2) Raising the quality of education in mathematics, natural science and IT.
 - 3) Online safety; responsible use of social media.
 - 4) Introduction of professional counselling in schools and facilities.

- 5) Increasing the quality of inclusive education in schools and educational system facilities.

II. in the 2018/2019 school year:

- 1) 100th anniversary of regaining independence – upbringing with values and shaping patriotic attitudes of pupils.
- 2) Implementation of a new general education core curriculum. Education to develop independence, creativity, and innovativeness of pupils.
- 3) Vocational education based on close cooperation with employers. Development of career counselling.
- 4) Development of digital competences of pupils and teachers. Safe and responsible use of resources available online.

III. in the 2019/2020 school year:

- 1) Prevention of addiction in schools and educational facilities.
- 2) Upbringing with values through shaping civic and patriotic attitudes.
- 3) Implementation of a new general education core curriculum in primary and secondary schools.
- 4) Developing mathematical competencies of pupils.
- 5) Development of creativity, entrepreneurship and digital competences of pupils, including safe and deliberate use of information and communication technologies in the implementation of the general education core curriculum.
- 6) Creating a programme offer in vocational education. Implementation of new core curricula for education in the sectoral VET school professions.

Upbringing and care activities of schools

120. The preamble of the UPO stipulates that education in the Republic of Poland is a common good of the whole society, is guided by the principles contained in the Constitution of the Republic of Poland, as well as the indications laid out in the Universal Declaration of Human Rights, International Covenant on Civil and Political Rights, and the Convention on the Rights of the Child. Education and upbringing- while respecting the Christian value system - adopts universal principles of ethics as its basis. Education and upbringing serves to help youth develop a sense of responsibility, love for the Homeland, and respect for Polish cultural heritage, while opening them up to the values of European and other cultures around the world. The school shall ensure that each pupil has the conditions necessary for development, prepare them to fulfil family and civic duties based on the principles of solidarity, democracy, tolerance, justice, and freedom.

Pursuant to the general education core curriculum the school and individual teachers take up activities aimed at individualised support of the development of each pupil/student according to his/her needs and abilities. For disabled pupils/students education is additionally adjusted to their psychophysical abilities and pace of learning. The choice of individualised forms of teaching should result from the recognizing of the potential of each pupil/student.

121. **Definition of upbringing** included into the Article 1 (3) of the UPO on 1 September 2017 states that: “*Upbringing [is] understood as supporting the child in the development to full maturity in the physical, emotional, intellectual, spiritual and social sphere, strengthened*

and supplemented by activities related to prevention in terms of the problems of children and youth”.

Pursuant to Article 4 (24) of the UPO the definition of pre-school education curricula and of general education curricula covers both compulsory set of education aims and teaching content, including skills that should be achieved by a pupil/student after completion a given level of education, as well as the education and prevention tasks of school have been entered accordingly, in pre-school upbringing programmes, school education curricula and during lessons with class teachers.

122. Pursuant to Article 26 of the UPO schools and education facilities implement **upbringing and prevention programme** that includes upbringing contents and activities addressed to pupils and preventive activities addressed to pupils, teachers, and parents. It should be developed on the basis of the results of an annual diagnosis in the scope of pupils' development needs in the school environment, including protection and risk factors, with particular emphasis on threats related to the use of psychotropic substances, substitute substances, and new psychoactive substances. The diagnosis is conducted by the leader of the school or facility or an employee of the school or facility authorised thereby.

The upbringing and prevention programme is adopted by the parents' council in consultation with the school board (Article 84 (2) of the UPO). In the 2017/2018 school year, a new core curriculum for general education²⁵ for primary schools and a part of secondary schools was introduced, and in the 2019/2020 school year, for the other secondary schools,²⁶ which determine objectives, teaching contents, and upbringing and prevention tasks have been defined, with a focus on upbringing to values.

123. Except for political parties and political organisations, in the school and facility may operate associations and other organisations, in particular scouting organisations the statutory objective of which is upbringing activity or expanding and enriching forms of didactic, upbringing, care, and innovation activities of a school or facility (Article 86 (1) of the UPO). Commencing activities at a school or a facility by an association or another organisation shall require consent of the leader of the school or facility given upon prior agreement on the conditions of such activity and receiving positive opinion of the board of the school or facility, and the parents' council (Article 86 (2) of the UPO).

Safe learning environment

Online safety

124. On 27 October 2017 the Act *on the Nationwide Education Network* (OSE) (Ustawa o Ogólnopolskiej Sieci Edukacyjnej; Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1334) was adopted under which a nationwide ICT network shall be created, linking all primary and secondary schools that will enable them to use broadband Internet with a throughput of at least 100 Mb/s and advanced ICT security services covering protection against malware, monitoring online threats and security, and counteracting access to content that may pose a threat to the proper development of the pupils, as well as access to multimedia tools and educational content supporting ongoing work of pupils and

²⁵ Regulation of the Minister of National Education of 14 September 2017 on *the core curriculum for pre-school education and general education in primary schools, including for pupils with moderate or severe intellectual disability, general education for stage-one sectoral VET schools, general education for special schools preparing for employment, and general education for post-secondary schools* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 356, as amended).

²⁶ Regulation of the Minister of National Education of 30 September 2018 on *the core curriculum for general upper secondary schools, technical upper secondary schools, and second-stage sectoral VET schools* (Dziennik Ustaw [*Polish Journal of Laws*] of 2018, item 467, as amended).

teachers. The OSE operator may also equip schools with computer equipment and other multimedia devices free of charge, as well as provide them with wireless Internet access along with the necessary devices enabling the use of these services, and software, enabling pupils to participate in classes via electronic means of communication. The OSE operator shall be the Scientific and Academic Computer Network – National Research Institute (Naukowa i Akademicka Sieć Komputerowa – Państwowy Instytut Badawczy).

OSE is a pioneering initiative, on a European scale, to equalise educational opportunities of children and youth, on a unique scale (it concerns over 20,000 schools – public and non-public, 600 thousand teachers and nearly 5 million pupils) and a budget for its implementation estimated at over PLN 1.6 billion over 10 years.

125. Within the framework of the *Cyfrowobezpieczeni.pl – Bezpieczna Szkoła Cyfrowa* [*Digitallysafe.pl - Safe Digital School*] project, implemented by the “Cities on the Internet” Association (Stowarzyszenie “Miasta w Internecie”) on order of the MEN (under a public task “Improving competence of school employees, pupils and their parents in the scope of safe usage of cyberspace and reacting to threats” (Poprawa kompetencji pracowników szkoły, uczniów i ich rodziców w zakresie bezpiecznego korzystania z cyberprzestrzeni oraz reagowania na zagrożenia), a group of experts created **“Recommendations for local governments - implementers of projects under the EU 2014-2020 budget perspective”** (Zalecenia i rekomendacje dla samorządów – realizatorów projektów w ramach unijnej perspektywy budżetowej 2014-2020). The purpose of this publication is to support the creators of educational and infrastructural projects aimed at improving the digital and information competences of teachers and pupils, as well as to provide schools with modern digital equipment and broadband Internet access, in their substantive preparation and effective implementation. The recommendations presented in the document will enable implementation of systems and solutions in terms of information and communication technologies that are fully functional, safe, and adapted to performing didactic and administrative tasks.

126. **“Smartphones in school. Let’s set the rules of the game”** (Smartfony w szkole. Ustalmy zasady gry) – a participatory project implemented by the Educational Research Institute. The project is of a research and implementation nature. It includes a series of debates and workshops attended by:

- representatives of the school community (school leaders, teachers, parents, pupils),
- experts in educational research and digital technologies,
- representatives of technological companies, local governments, and non-governmental organisations, as well as representatives of the media.

The project objective is creation of a set of recommendations concerning standards and methods of using smartphones in primary schools. The task of the project participants will be to develop solutions in several areas:

- 1) Effective use of smartphones in education. This issue applies both to the use of mobile devices by teachers and pupils during classes, as well as education among children in regard to skills related to the proper use of knowledge resources - critical thinking and assessing the value and reliability of information.
- 2) Risks occurring when using smartphones. This area includes both problems related to the phenomenon of aggression on the Internet and access to inappropriate content, as well as misuse of smartphones.

- 3) Culture of using smartphones. Determining clear rules, defining e.g. when and how to use a smartphone, whose photo may be taken and in what situations, and for what purposes it can be used.

Patronage over the project was assumed by the MEN. Project partners are: “Cities on the Internet” Association (Stowarzyszenie “Miasta w Internecie”), Orange Foundation, Samsung, Microsoft, and the Digital Poland Project Centre (Centrum Projektów Polska Cyfrowa).

Safe school and surroundings

127. **“Safe School. Threats and recommended preventive measures in the field of physical and digital safety of pupils”** (Bezpieczna Szkoła. Zagrożenia i zalecane działania profilaktyczne w zakresie bezpieczeństwa fizycznego i cyfrowego uczniów) - the document was prepared at the Department of Integrated Upbringing and Education of the MEN (Departament Wychowania i Kształcenia Integracyjnego) with participation of experts, after consultation with other ministries and institutions responsible for safety. It is a set of recommendations and guidelines for school leaders and school governing bodies. The guidelines and recommendations presented in the document regarding safety at school constitute a proposal of actions to be taken by school leaders in their school environments together with teachers and parents of the pupils.

Visual monitoring

128. If it is necessary to ensure the safety of pupils and employees or to protect property, the headmaster of the school or facility, in consultation with the authority governing the school or facility, and after consultations with the school board, parents’ council and the student council, may introduce special supervision over the premises of the school or facility or the area around the school or facility in the form of technical measures enabling the recording of images (monitoring).

Monitoring should not constitute a means of supervision over the quality of work performed by school or facility employees.

Monitoring does not cover premises where didactic, upbringing, and care activities are conducted, premises where psychological and pedagogical assistance is provided to pupils, premises intended for rest and recreation of employees, sanitary facilities, preventative healthcare office, cloak rooms and changing rooms, unless the use of monitoring in these areas is necessary due to the existing threat to the safety of pupils and employees or the protection of property of the school or facility, of the headmaster of the school or facility does not violate the dignity or other personal rights of students, employees and other persons; in particular, techniques will be applied which prevent the identification of persons staying on these premises (Article 108 (a) of the UPO).

II.3.6. Education personnel

Financing of upskilling and professional development of teachers

129. The provisions of the education law provide for a built-in permanent mechanism to provide teachers with the possibility of co-financing a part or entirety of upskilling and professional development.

Financing of upskilling and professional development of teachers employed in juvenile detention centres and shelters for minors takes place on the general terms and conditions set out in the provisions of the MEN.

130. Issues related to the co-financing of teacher upskilling are regulated by the provisions of Article 70a of the UKN and the Regulation of the Minister of National Education of 23 August 2019 *on co-financing the professional development of teachers, detailed objectives of sectoral training, as well as the procedure and conditions for directing teachers for sectoral training* (Dziennik Ustaw [Polish Journal of Laws] of 2019, item 1653).
131. As of 1 January 2019 funds for subsidising professional development of teachers are a separate item in:
- 1) budgets of the school governing bodies - for co-financing the professional development of teachers - in the amount of 0.8% of the planned annual funds allocated to the personal remuneration of teachers (Article 70a (1) of the UKN) (estimated value of approx. PLN 250,000 thousand);
 - 2) province (voivode) budgets - to support methodological consultancy organisation within the province, in the total amount of 12400 average remunerations of a certified teacher (Article 70a (4) of the UKN) (PLN 76,150 thousand);
 - 3) budget of the minister responsible for education and upbringing - for the implementation of national tasks in the field of professional development of teachers in the total amount of 2700 average remunerations of a certified teacher (Article 70a (7) of the UKN) (PLN 13,677 thousand).
132. The school leader shall specify the needs related to the professional development of teachers for each school year.
- In its budget, the school governing authority shall include funds for co-financing the professional development of teachers in the amount of 0.8% of the planned annual funds allocated to the personal remuneration of teachers.
- These funds may be used to subsidise, in part or in whole, the costs of teacher training in forms granting new qualifications (as part of studies, postgraduate studies, and qualification courses), as well as various forms of improvement addressed to the teachers at a given school and to individual teachers raising professional competences as part of their qualifications and promoting personal development.
133. In order to improve the quality of vocational education, as at 1 September 2019, an obligation was introduced to conduct three-year cycles – a total of 40 hours – of sectoral training courses to improve skills and professional qualifications necessary for teachers of theoretical professional classes and teachers of practical vocational education, respectively, at a workplace or in individual agricultural holdings.
- The costs of sectoral training may be financed from the abovementioned funds for co-financing the professional development of teachers included in budgets of school governing bodies (referred to in p. 132 of the report), and may also be financed:
- by employers or persons operating individual agricultural holdings,
 - from the funds of the National Training Fund (Narodowy Fundusz Szkoleniowy), on the terms and conditions pertaining to courses,
 - from funds of educational programmes of the European Union.
- Province governor (Voivode) funds to finance expenses related to the employment of teachers in public teacher training institutions in order to perform tasks of a methodological adviser.
134. Since 2019, the tasks of a methodological adviser are entrusted by the Regional Education Superintendent in consultation with the headmaster of the public development institution,

with the consent of the leader of the school or the facility in which the teacher is employed.²⁷ Funds for the implementation of this task are secured in the province governors' budgets in the total amount of 12400 average remunerations of a certified teacher. These funds are used by the province governor to grant subsidies to local government units operating teacher development institutions employing teachers-methodological advisers to finance expenses related to their employment in order to perform tasks of a methodological adviser.

The aim of the changes introduced in the methodological counselling system is to improve and balance the access of teachers to methodological mentoring and better use of the didactic potential of good teachers than before.

Prior to the changes entering into force, teachers' access to methodological mentoring was very unequal both due to the number of teachers per adviser and due to the distribution of teaching specialisations thereof. The manner of organising methodological mentoring resulting from the provisions of law allowed for independent implementation of this task in a manner satisfying the needs of teachers only in large local government units. Small communes – due to a small amount of separate funds (up to 20% of the total pool of funds in the budget of a local government unit to subsidise professional development of teachers) – were unable to provide mentoring in the necessary specialisations.

During the transitional period, teachers performing tasks of methodological advisers on the effective date of the new regulations enabled the performance of these tasks on the existing conditions until the end of the period for which they were entrusted with them, in the manner specified by local government units entrusting them with tasks, with the proviso that remuneration in this respect shall be paid from a subsidy granted from the province governor's budget. Due to the fact that previous regulations allowed for entrusting the tasks of a methodological adviser for a period of up to 3 years, it is assumed that the transitional period will last until 2021.

The minister responsible for education and upbringing allocates funds for the implementation of nationwide tasks in the field of teacher training, in the total amount of 2700 average remunerations of a certified teacher.

Teachers' duties

135. The basic obligations of teachers employed in the Polish education system are laid down in Article 6 of the UKN. These include: reliably perform tasks related to their position and basic functions of the school: teaching, upbringing, and care, including tasks related to ensuring safety to pupils during classes organised by the school; support each pupil in their development; striving for complete personal development; professional training, in accordance with the needs of the school; educating and upbringing of youth with love of the Homeland, respecting the Constitution of the Republic of Poland, in an atmosphere of freedom of conscience and respect for every human being; care for shaping pupils' moral and civic attitudes in accordance with the idea of democracy, peace and friendship between people of different nations, races and worldviews.

Assessment of the teacher's work

136. Pursuant to Article 6a of the UKN, the work of a teacher employed in the Polish education system, except for the work of a trainee teacher, is subject to assessment. Teacher's work assessment may be performed at any time, not earlier than after a year from the previous

²⁷ Regulation of the Minister of Education of 28 May 2019 *on teacher professional development facilities* (Dziennik Ustaw [Polish Journal of Laws] of 2019, item 1045)

assessment or assessment of professional achievements on the initiative of the school leader or upon request of: the teacher; the authority performing pedagogical supervision, and in the case of teacher at teacher training facilities - the Regional Education Superintendent; the authority operating the school; the school board or the parents' council.

The minister responsible for education and upbringing, and in relation to teachers of art schools, of juvenile detention centres, of shelters for minors, respectively - the minister responsible for culture and protection of national heritage and the Minister of Justice, in consultation with the minister responsible for education and upbringing, determines, by way of a regulation, the procedure for evaluating the work of teachers, including teachers holding managerial positions, detailed scope of information contained in the work assessment sheet, composition and manner of appointing the evaluation team, and a detailed procedure of appeal, having regard to the need to ensure an appropriate level of work performed by teachers.

Required qualifications

137. The position of teacher may be held by a person who: has higher education with proper pedagogical training or who graduated from a teacher training institution and takes the job on the position for which these qualifications are sufficient; observes the basic moral principles; meets the health conditions necessary to perform the profession (Article 9 (1) of the UKN).

The minister responsible for education and upbringing, and in relation to art school teachers - the minister responsible for culture and national heritage protection, in consultation with interested ministers, by way of a regulation, shall specify detailed qualifications required from teachers, indicating, in particular, the level of education and its scope in relation to individual types of schools and facilities, conditions for obtaining qualifications to teach foreign languages, also through language exams and a list of those exams, and may determine schools and instances in which teachers who do not have higher education nor graduated from a teacher education institution can be employed, taking into account, in particular, the needs of vocational education (Article 9 (2) of the UKN).

The minister responsible for culture and national heritage protection may define, by way of a regulation, art schools in which teacher positions may be held by persons who graduated from a second-stage art school with regard to the direction corresponding to subjects taught, taking into account, in particular, the types of art schools in which teachers who have graduated from second-stage art school can be employed (Article 9 (3) of the UKN).

Professional promotion

138. Chapter 3a of the UKN specifies professional promotion of teachers employed in the Polish education system, including professional ranks and conditions of achieving a subsequent rank. Article 9a of the UKN sets four stages of professional promotion of teachers:
- 1) trainee teacher;
 - 2) contract teacher;
 - 3) appointed teacher;
 - 4) chartered teacher.

A person who does not have a professional rank as of the date of establishment of the employment relationship at a school shall receive the rank of a trainee teacher, with certain exceptions in relation to academic teachers and persons with long-term professional experience and significant professional achievements.

Disciplinary liability

139. In the Polish system of education, each teacher, regardless of their professional rank, as well as the basis of employment, shall be subject to disciplinary liability, as defined in chapter 10 of the UKN. Teachers shall be subject to disciplinary liability for failure to uphold the dignity of the teaching profession or the obligations referred to in Article 6 of the UKN.

II.3.7. Respect for human rights and fundamental freedoms

140. **The Council of Children and Youth of the Republic of Poland to the Minister of National Education** (Rada Dzieci i Młodzieży Rzeczypospolitej Polskiej przy Ministrze Edukacji Narodowej) has been operating since 2016. The Council's tasks include expressing opinions and submitting proposals on issues concerning children and adolescents in the scope of matters covered by the department of government administration for education and upbringing, in particular presenting opinions on planned changes and proposals of solutions, as well as promoting patriotic and civic attitudes and activity of young people in public life, who play a key role in creating civil society. The Council consists of 16 members and their deputies appointed by the Minister of National Education, one member and one deputy from each province.
141. A breakthrough in the creation of a dialogue between the most important state authorities and the young generation of Poles was the appointment of a **Council for Dialogue with the Young Generation** (Rada Dialogu z Młodym Pokoleniem) – an opinion-giving and advisory body to the Chair of the Public Benefit Committee (Komitet Pożytku Publicznego), established by virtue of the Act of 19 July 2019 *amending the Act on Public Benefit Activity and Volunteer Work* (Ustawa z dnia 19 lipca 2019 r. o zmianie ustawy o działalności pożytku publicznego i o wolontariacie) (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 1570).

The tasks of the of the Council for Dialogue with the Young Generation shall include in particular:

- 1) expressing opinions on issues concerning the application of the Act of 24 April 2003 *on Public Benefit Activity and Volunteer Work* (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1057) in the scope concerning the young generation;
- 2) expressing opinions on drafts of legal acts and government programmes in the scope concerning the young generation;
- 3) initiating and supporting actions aimed at increasing the level of civic participation of young people in the Republic of Poland;
- 4) creation of a dialogue forum between non-governmental organisations and other social institutions and public authorities in the scope concerning the young generation;
- 5) supporting the activities of civil dialogue institutions acting for the benefit of the young generation, including children and youth, with particular emphasis on youth councils of communes.

Council for Dialogue with the Young Generation consists, inter alia, of representatives of the President of the Republic of Poland, Commissioner for Child Rights, President of the Council of Ministers, minister responsible for education and upbringing, minister

responsible for higher education and science, minister responsible for physical culture; Chair of the Public Benefit Committee, local government units, non-governmental organisations, unions and agreements of non-governmental organisations and entities listed in the Article 3 (3) of the Act of 24 April 2003 *on Public Benefit Activity and Volunteer Work*, and youth councils of communes, and the Parliament of the Students of the Republic of Poland (Parlament Studentów Rzeczypospolitej Polskiej).

In 2019, the Council members met twice (in October and December). The third Council meeting held on 10 January 2020.

142. On 23 September 2020, the Regulation of the Council of Ministers of 22 September 2020 on the appointment of **the Government Plenipotentiary for Youth Policy** (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 1631) entered into force.

The Plenipotentiary's tasks include:

- 1) initiating activities and cooperation with government administration authorities, local government bodies, and non-governmental organisations in the scope of activities that increase the involvement of young people in public life;
- 2) coordinating dialogue between the government administration and socio-economic partners, non-governmental organisations, and local government authorities in the field of initiatives in the area of youth policy;
- 3) monitoring the work undertaken by government administration bodies and local government authorities in matters related to the situation of young people in Poland;
- 4) cooperation with the Council for Dialogue with the Young Generation in the field of issuing opinions on draft legal acts and presenting recommendations on the activities of government administration bodies and local government authorities in matters concerning youth;
- 5) coordinating the preparation and implementation – based on consultations conducted with a broad circle of stakeholders – a strategic document concerning state's actions in the area of youth policy.

143. On 31 March 2020, the Regulation of the Minister of Climate of 30 March 2020 on the establishment of the **Youth Climate Council** (Dziennik Urzędowy Ministra Klimatu [*Official Journal of the Minister of Climate*] of 2020, item 20) entered into force.

The Youth Climate Council is an advisory body to the Minister of Climate. The scope of the Council's activities includes expressing opinions on issues covered by government administration departments on climate and energy, in particular presenting opinions on planned changes in policies, strategies and legislative changes in the scope of the competence of the Minister of Climate, including proposals of solutions. The Council consists of 32 members aged 13-26, selected from among candidacies submitted as part of the recruitment process organised by the Ministry of Climate. The council members were nominated pursuant to the decision of the Minister of Climate of 8 September 2020 on the nomination of the Youth Climate Council members.

144. 1 June 2020 the Minister of Environment and the Commissioner for Child Rights signed an agreement on the establishment of the **Youth Ecological Council**. The Council is composed of 32 persons aged 13-21 recruited from all over Poland. The first meeting took place on 30 September 2020 during the *Green Forum of the Youth*. The meetings are scheduled to be held at least once a quarter, with the participation of the Minister of Environment and the Commissioner for Child Rights.

The competences of the Youth Ecological Council to the Minister of Environment include expressing opinions on matters covered by government administration activities concerning the environment, in particular presenting opinions on planned changes in policies, strategies and legislative changes in the scope of competence of the Minister of Environment, including proposals of solutions. Apart from the advisory competence, the Council will have a budget (PLN 32 thousand, provided by State Forests) which it will be able to allocate towards implementation of pro-ecological activities of children and youth.

Project substantive partners are: State Forests (Lasy Państwowe), National Parks (Parki Narodowe) and the National Geological Institute (Państwowy Instytut Geologiczny).

Edukacja globalna

145. **“Global Education. Educational Leaders for Development II” 7th edition of the 2-module 2018-2019 project** (“Edukacja globalna. Liderzy edukacji na rzecz rozwoju II” VII edycja 2-modułowego projektu 2018-2019) – project implemented in Polish schools in accordance with the core curriculum and “Multi-Year Programme of Development Cooperation for 2016-2020” (Wieloletni program współpracy rozwojowej na lata 2016-2020) <http://www.edukacjaglobalna.ore.edu.pl/>

II.3.8. Non-public education. Religious and moral education

146. The functioning of public and non-public schools operated by legal persons other than local government units or natural persons is regulated by the provisions of the UPO, and the subsidising of them – by the provisions of the UFZO.
1. The school and facility may be public or non-public.
 2. The school and facility may be established and conducted by:
 - 1) a local government unit;
 - 2) other legal person;
 - 3) a natural person;
 - 4) competent minister.
 3. Local government units may establish and operate only public schools and facilities.

Public schools

147. In order to establish a public school, a legal person other than a local government unit, or a natural person, is required to obtain, in accordance with Article 88 of the UPO, a permit from a competent authority of a local government unit whose task is to run public schools of a given type, issued after obtaining a positive opinion of the Head of Regional Education Authority.

The application for the permit referred to above shall be submitted together with the draft of the founding act and statute of the school. The application should also contain data necessary to enter the school into the national official business register. The application shall be submitted no later than by 30 September of the year preceding the year in which the school is to be opened.

The minister responsible for education and upbringing shall define, by way of a regulation, detailed rules and conditions for granting and revoking a permit to establish a public school or facility so that creation of public schools by legal and natural persons facilitates the improvement of education conditions, and has also positively complemented the network of public schools in the country.

The authority or person establishing a school or facility shall sign the founding act and assigns its first statute.

The founding act and statute of a public school shall be sent to the competent Regional Education Superintendent and other authorities competent to exercise pedagogical supervision over the school.

Non-public schools and facilities

148. Legal persons and natural persons may establish non-public schools and facilities after being entered in the register kept by a local government unit obliged to operate a given type of public schools and facilities.
149. Pursuant to Article 14 (3) of the UPO, a non-public school which is not an art school shall:
 - 1) implement school curricula taking into account the core curriculum of general education, and in the case of a school providing vocational education - also the core curricula of education in the sectoral VET school professions;
 - 2) carry out mandatory educational classes in a period not shorter and no less than the total time of individual classes defined in the framework teaching plan for a given type of school;
 - 3) apply the rules for classifying and promoting pupils and conducting the exams referred to in chapters 3a and 3b of the USO;
 - 4) keep documentation of the course of education determined for public schools;
 - 5) in the case of a school providing vocational education - educate in the professions defined in the classification of sectoral VET school professions;
 - 6) employs teachers of mandatory educational classes, referred to in point 2, having qualifications defined for teachers of public schools.
150. Pursuant to Article 168 (4) of the UPO, registration should include:
 - 1) designation of the person intending to operate a school or facility, its place of residence or registered office;
 - 2) specification of the kind and type of school and the date of commencement of its operation, and in the case of a school providing vocational education - also the names of professions the school will educate in, consistent with the names the professions specified in the classification of sectoral VET school professions;
 - 3) in the case of primary school or general upper secondary school – information whether the school is for children and youth or for adults;
 - 4) in the case of primary school – information whether pre-school education class or classes will be organized in the school;
 - 5) indication of the place where the school or facility operates and of other premises of providing education, upbringing and care activities, if setting-up of them is planned, whereby other premises must be situated on the territory of a local government unit which responsible to register the school/facility, and in the case of an art school – other premises must be located in the same city/town, as well as the information on conditions of premises that ensure:
 - a) a possibility of conducting didactic and upbringing classes,
 - b) performance of other statutory tasks,
 - c) in the case of a school providing vocational education, except for art school – a possibility of learning a given profession in practice,
 - d) safe and hygienic working conditions, meeting the requirements laid down in the provisions on safety and hygiene in public and non-public schools and facilities, environmental protection regulations, provisions on the State Sanitary Inspection (Państwowa Inspekcja Sanitarna), technical and construction and fire protection

regulations; compliance with these requirements is confirmed by enclosing a positive opinion of a competent state district sanitary inspector and a positive opinion of the district (municipal) commandant of the State Fire Service (Państwowa Straż Pożarna);

- 6) the school or facility statute;
- 7) data on qualifications of pedagogical staff and headmaster to be employed at the school or facility;
- 8) in the case of a non-public school which is not an art school – an obligation to comply with the requirements specified in Article 14 (3) of the UPO;
- 9) in the case of the art school which provide general education, to which powers of a public art school shall be granted in the date of commencement of its operation – an obligation to apply with the requirements specified in Article 14 (4) of the UPO;
- 10) in the case of the school indicated in Article 178 (1) of the UPO – information on the permission of the minister responsible for education and upbringing to establish and conduct a non-public school which does not fulfil the conditions specified in Article 14 (3) of the UPO;
- 11) data necessary for the school or facility to be entered to the national official business register (krajowy rejestr urzędowy podmiotów gospodarki narodowej).

A local government unit obliged to operate a given type of school shall make an entry in the register within 30 days from the date of notification and the agency shall provide the applicant with a certificate of entry into the register, and a copy of the certificate shall be provided to the competent Regional Education Superintendent and tax authority.

151. The requirements for non-public schools are laid down in detail in Article 14 (3) of the UPO, imposing a number of duties on them in the scope of approximating standards of conducted educational activities to those of public schools. Failure to meet these requirements shall lead to the deletion from the register and closure of the school.

An art school providing general education may only be a public school or non-public school with the rights of public art school (Article 17 (2) of the UPO).

Non-public primary schools, after fulfilling the information obligations specified by law, receive a guarantee of subsidising from the budget of local authorities (commune or district) and - in the case of non-public art schools having the rights of public art schools - directly from the state budget. The subsidy corresponds to at least 100% of the subsidy amount per student paid by the state budget to local governments in order to operate public schools. The subsidiary is significantly higher in relation to disabled students.

152. Non-public upper secondary schools on similar terms as primary non-public schools – are subsidised from the budget of local authorities (commune or district) and, in case of non-public art schools having the rights of public art schools – directly from the state budget. Non-public art schools which do not have the rights of public art schools may receive subsidiary from the state budget.

Conditions for establishing non-public schools and facilities

153. Legal persons and natural persons may establish non-public schools and facilities after being entered in the register kept by a local government unit obliged to operate a given type of public schools and facilities.

Legal persons and natural persons may establish non-public art schools after being entered into the register kept by a specialised supervisory unit referred to in Article 53 (1) of the UPO.

The minister responsible for culture and national heritage protection, at the request of the person operating a non-public art school without rights of a public art school, submitted not earlier than after the end of the first year of education provided by that school, and in the case of an art post-secondary school - the first semester of education, shall grant this school the rights of a public art school after having determined that this school meets the conditions set out in Article 14 (4) of the UPO, and in the case of an art school providing general education - also after the person operating it presents a positive opinion of the Regional Education Superintendent.

The minister responsible for culture and national heritage protection may, by way of a regulation, entrust a specialist supervision unit with issuing decisions on granting a non-public school the rights of a public school or on revoking these rights.

Creating optimal learning conditions

154. Schools and facilities undertake necessary actions in order to create optimal conditions for didactic, upbringing, and care activities as well as other statutory activities, to provide each pupil with conditions necessary for development, improvement of the quality of work of the school or facility and its organisational development.

The aforementioned activities concern:

- 1) effects in the scope of education, upbringing, and care as well as achievement of statutory objectives and implementation of statutory tasks;
- 2) organisation of education, upbringing, and care processes;
- 3) creation of conditions for development, and activity, including creativity, of the students;
- 4) cooperation with parents and local communities;
- 5) managing a school or facility.

The minister responsible for education and upbringing shall define, by way of a regulation, with regard to various types of schools and facilities, requirements for the schools and facilities concerning the correctness and effectiveness of these activities in the scope of:

- 1) course of education, upbringing, and care processes;
- 2) enabling each pupil to develop as far as their individual capabilities allow;
- 3) taking actions aimed at improving the quality of its work;
- 4) engaging pupils, parents, and teachers in the activities of a school or facility;
- 5) cooperate with the local community;
- 6) the effects of education and upbringing achieved;
- 7) activity of pupils and their development adequately to the needs and capabilities;
- 8) improve the work of the school or facility with the involvement of the school community and the local community.

Ensuring the quality of education in public and non-public schools/facilities

Accreditation

155. A further education institution and a vocational education centre may obtain an accreditation for further education conducted in an out-of-school form. Accreditation shall be a confirmation of meeting specific requirements and ensuring high quality of further education conducted in a given out-of-school form.

Accreditation, by way of an administrative decision, shall be granted by Regional Education Superintendent having jurisdiction over the place of conducting further education in a given out-of-school form for a period of 5 years.

Pedagogical supervision system

156. The system distinguishes four related forms of supervision:
- **evaluation** which is a quality research aimed consisting in collecting, analysing and communicating information on the value of activities undertaken by school/facility in the scope of the requirements specified in the regulations;
 - **control** of compliance with the provisions of law concerning the education, upbringing and care activities, and other statutory activities of nursery schools, schools, facilities, and teachers;
 - **supporting** the work of nursery schools, schools, facilities, and teachers, including by publishing the results of pedagogical supervision, organising conferences and meetings, as well as providing information on educational issues and changes in regulations;
 - **monitoring** consisting in collecting and analysing information about the activity of a nursery school, school, or facility in order to identify and eliminate threats to the proper implementation of their tasks.
157. The main role in external quality assurance is played by **pedagogical supervision authorities**:
- a) the minister responsible for education and upbringing, the minister responsible for culture and national heritage protection, the minister responsible for agriculture, the minister responsible for environment, and the Minister of Justice who supervise specific types of schools;

The minister responsible for education and upbringing shall supervise and coordinate pedagogical supervision throughout the country, in particular the activities of the Regional Education Superintendents in this respect. To this end, the minister responsible for education and upbringing:

- 1) shall determine the basic directions of implementation of the state education policy, in particular tasks related to pedagogical supervision;
- 2) shall control the efficiency and effectiveness of pedagogical supervision exercised by Regional Education Superintendents and compliance with the provisions in this regard, and may also issue for the Superintendents written guidelines and instructions binding to them, except for individual cases resolved by way of an administrative decision;
- 3) may request the Regional Education Superintendents to provide information, documents, and periodic reports or reports on specific cases;
- 4) may organise training, meetings, and conferences of Regional Education Superintendents;
- 5) may announce recommended standards of school equipment necessary for teaching general subjects in the minister's official journal.

In the basic directions of implementation of the state educational policy the minister responsible for education and upbringing specifies thematic scope of pedagogical supervision implemented by Regional Education Superintendents in a given school year (control, evaluation and monitoring).

The minister also operates an electronic pedagogical supervision platform which gathers, inter alia, information on the activity of nursery schools, schools, and facilities obtained during external evaluation as well as results and conclusions from external evaluation.

Access to the platform is granted to persons performing tasks related to pedagogical supervision, teachers, pupils, parents, and bodies operating nursery schools, schools, and facilities.

As part of their tasks, the minister responsible for education and upbringing defines, by way of a regulation, in consultation with other competent ministers, detailed conditions, rules for the exercise, and forms of pedagogical supervision, including conducting evaluation.

The remaining ministers mentioned above shall exercise pedagogical supervision over specific schools or facilities in accordance with the scope of their activity (inter alia, over art, agricultural, and forestry schools). However, these schools and establishments are subject to pedagogical supervision in accordance with detailed rules set out in the regulation of the minister responsible for education and upbringing, in consultation with these ministers. In addition, the minister responsible for culture and national heritage protection, the minister responsible for agriculture, and the minister responsible for the environment may create specialist pedagogical supervision units.

b) Regional Education Superintendents

A Regional Education Superintendent conducts pedagogical supervision over public and non-public nursery schools, other forms of pre-school education, schools, and facilities in the mode of:

- planned actions – due to the plan of pedagogical supervision determined by the authority and state education policy directions,
- ad hoc actions – in the case of the need of taking up activities not having been specified in the plan of pedagogical supervision (e.g. as a result of cases that indicate irregularities in the operation of supervised educational institutions brought up to the Regional Education Superintendent by parents).

Teacher assessment

158. The provisions of the UKN provide for evaluation of a teacher's work and professional achievements. The evaluation rules are the same for teachers employed in the early care and education sector and the school education sector, as well as in the public and non-public sector.

Pupil assessment

159. Assessment shall encompass educational achievements of the pupil and pupil's behaviour. Evaluation of educational accomplishments and behaviour of the pupil is performed under an in-school assessment process in line with in-school evaluation principles aimed at:
- 1) informing the pupil about the level of educational achievements and their behaviour and about the progress in this regard;
 - 2) providing pupils with assistance in learning by providing them with information on what they did well and how to continue learning;
 - 3) providing guidance on self-planning of one's own development;
 - 4) motivating pupils to further progress in learning and behaviour;
 - 5) providing parents and teachers with information on progress and difficulties in learning and behaviour, and on special talents of the pupil;
 - 6) enabling teachers to improve organisation and methods of didactic and upbringing work.

160. **The eight-grader exam** is conducted on the basis of the requirements set out in the general education core curriculum for primary school and it checks to what degree the pupil or student meets these requirements.

The **maturity exam** is conducted on the basis of the requirements set out in the general education core curriculum referred to in the provisions issued on the basis of Article 47 (1.1) (c) and (d) of the UPO and checks to what degree the graduate meets these requirements.

The person responsible for organising and course of the eight-grader exam or maturity exam in a given school shall be the headmaster of that school. The headmaster of the school shall appoint an examination team to conduct the eight-grader or maturity exam in the given school.

The minister responsible for education and upbringing shall define, by way of a regulation, detailed conditions of conducting the eight-grader or maturity exam.

161. The **vocational exam** is a form of assessment of the level of proficiency in terms of knowledge and skills of a person mentioned in Article 44zzzb (3) of the USO, in the scope of a single qualification distinguished in a profession determined in the core curriculum for education in the professions of sectoral VET schools. The vocational exam is conducted on the basis of requirements defined in the core curriculum for education in the professions of sectoral VET schools. The minister responsible for education and upbringing shall define, by way of a regulation, detailed conditions and manners of conducting vocational exam.

162. **Extramural exam**

A person who is 18 years of age or more may obtain a certificate of completion of primary school and general upper secondary school after passing extramural exams conducted by the regional examination board, subject to Article 10a of the USO.

Extramural exams are conducted within the scope of mandatory classes specified in framework teaching plans, accordingly, of primary school for adults or general upper secondary school for adults.

Extramural exams are carried out on the basis of the requirements set out in the general education core curriculum, however, in the case of a general secondary school for adults - on the basis of the requirements set out in the general education curriculum for the basic scope.

A person who is 18 years of age or more may obtain a certificate professional qualification after passing an extramural exam in the scope of a given qualification, conducted by the regional examination board. Extramural exam is conducted in the scope of requirements defined in the core curriculum for education in the professions of sectoral VET schools.

The minister responsible for education and upbringing shall define, by way of a regulation, detailed conditions and manners of conducting extramural exams, including assessment conditions, and education classes from which extramural exams are conducted; conditions for admission to extramural exams; conditions for remunerations of the examiners conducting extramural exams.

163. The tasks of the **Central Examination Board** shall include, in particular:

- 1) drawing up and determining examination materials, in particular tasks and examination sheets to conduct an eight-grader exam, maturity exam, vocational exam, and extramural exams;

- 2) determining the rules for preparation of proposals for tasks, examination sheets, and examination materials;
- 3) drawing up and determining the rules for evaluating solutions for tasks used to conduct examinations in order to ensure comparability of evaluation;
- 4) developing and publishing information bulletins containing, in particular, examples of tasks that may be included in the exam along with solutions thereto in the Public Information Bulletin (Biuletyn Informacji Publicznej) on the Central Examination Board's website;
- 5) organising the printing and distribution of examination materials;
- 6) analysing the examination results, as well as submitting annual reports on the results thereof to the minister responsible for education and upbringing;
- 7) drawing up training materials for candidates for examiners in cooperation with regional examination boards;
- 8) cooperate with domestic and foreign institutions in the field of examination;
- 9) initiating or organising research, analyses, and diagnostic tests and developing new solutions in the field of examination;
- 10) implementing international and inter-ministerial agreements in the scope of conducting exams;
- 11) annual publications in the Public Information Bulletin on the website of the Central Examination Commission of:
 - a) messages on:
 - the schedule of conducting eight-grader exam, maturity exam, vocational exam, and extramural exams, including:
 - dates of exam results announcement,
 - deadlines for passing the results of the eight-grader exams and the written part of the maturity exam, as well as certificates on detailed results of the eight-grader exams, certificates of maturity, annexes to certificates of maturity, and certificates of maturity exam results to schools,
 - deadlines for passing the results of vocational exams and professional qualifications certificates to schools, institutions or centres, employers and entities conducting qualification vocational courses, as well as deadlines for passing vocational diplomas to schools,,
 - auxiliary materials and supplies which can be used during the eight-grader exam, maturity exam, vocational exam, and extramural exams, as well as a list of operating systems, utility programmes, and programming languages - in the case of an IT maturity exam,
 - detailed methods of adjusting the conditions and forms of conducting the eight-grader exam, maturity exam, vocational exam, and extramural exams to the needs of the persons referred to in Article 44zzr, Article 44zzzf, and Article 44zzzh of the USO,
 - lists of qualifications distinguished in professions defined in the classification of sectoral VET school professions, tasks from which, in the practical part,

are open, together with an indication of the location where the tasks are made available to the public,

- b) information on the manner of organising and conducting the eight-grader exam, maturity exam, vocational exam, and extramural exams.

164. The legal framework for **teaching religion** in nursery schools and public schools are, inter alia, included in the following provisions of:

- the Constitution of the Republic of Poland, in particular:
 - Article 25 [The principle of equal rights and autonomy of churches and religious associations],
 - Article 48 [Right to bring up children; limitation of parental rights],
 - Article 53 [Freedom of conscience and religion],
- the Act of 17 May 1989 *on Guarantees of Freedom of Conscience and Religion* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 1153),
- the USO – Article 12,
- the regulation of the Minister of National Education of 14 April 1992 *on the conditions and methods of organising religion lessons in public nursery schools and schools* (Dziennik Ustaw [*Polish Journal of Laws*] of 2020, item 983).

Relations between the Republic of Poland and the Catholic Church are defined in an international agreement concluded with the Holy See and in relevant acts.

Relations between the Republic of Poland and other churches and religious associations are defined in the acts adopted on the basis of agreements concluded by the Council of Ministers with the competent representatives of these churches and associations.

The applicable legal order guarantees parents' right (adult students) to apply for the organisation of **religion lessons** (of a particular religion) **or ethics** in a public nursery school and public school. Currently, about 30 churches and other religious associations organise religion lessons as part of the education system.

In order to eliminate possible signs of intolerance, the school documentation (including certificates) does not include data which would indicate the religion (or ethics) classes a particular pupil attends (§ 9 of the aforementioned Regulation).

See also: the information presented in the point 124 of the report of the Republic of Poland on the implementation of the Convention in the years 2012-2015.

II.3.9. Rights of national minorities

- 165. A school or a public institution shall be established on the basis of a founding act which defines its type, name, and registered office accordingly.
- 166. There are no districts for special schools, integration schools, two-language schools, schools for national and ethnic minorities and communities using regional language, sports schools, schools for sport champions, art schools, schools in juvenile detention centres and shelters for minors, and schools in correctional facilities and detention centres (Article 88 (1) and (3) of the UPO).
- 167. Dla nauczycieli zatrudnionych w szkołach z językiem nauczania mniejszości narodowych In accordance with their needs, for teachers employed in schools where the teaching

language is a language of a national or ethnic minority, methodological advice may be organised and provided, in accordance with the Regulation of the Minister of National Education of 28 May 2019 *on teacher training facilities* (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 1045), and the earlier Regulation of the Minister of National Education of 29 September 2016 *on teacher training facilities* (Dziennik Ustaw [*Polish Journal of Laws*] of 2016, item 1591).

Since 2019, the Regional Education Superintendent shall organise a network of methodological consultancy within their province and entrusts teachers with the tasks of methodological advisors. In this respect, the Regional Education Superintendent shall cooperate, inter alia, with the organisations of national minorities, the organisations of ethnic minorities, and the organisations of communities using regional language.

Activities aimed at maintaining the sense of national, ethnic and language identity of pupils belonging to national and ethnic minorities, and communities using a regional language

168. Nursery schools and schools shall undertake activities aimed at maintaining the sense of national, ethnic and language identity of pupils on the basis of the provisions of the Regulation of the Minister of National Education of 14 November 2007 *on the conditions and manner of performing tasks by nursery schools, schools and public establishments, enabling pupils belonging to national and ethnic minorities and communities using regional language to maintain a sense of national, ethnic and language identity* (Dziennik Ustaw [*Polish Journal of Laws*] of 2014, item 263) – applies to lower secondary schools and upper secondary schools (repealed on 1 September 2017) and to the Regulation of 18 August 2017 (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 1627) – applies to nursery schools, primary schools, and secondary schools. These regulations are correlated to the provisions of the Act of 6 January 2005 *on National and Ethnic Minorities and Regional Language* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 823).

In 2019, teaching the languages of national minorities or teaching in these languages (Belarusian, Lithuanian, German, Armenian, Russian, Slovak, Ukrainian and Jewish), the Lemkos ethnic minority, and regional language (Kashubian) was conducted in more than 1,300 facilities (including schools and inter-school minority language teaching complexes and nursery school) and included 77453 students in total. In addition, schools organised additional educational classes for 2029 pupils of Roma origin (remedial classes and classes to maintain ethnic identity) and employed Roma education assistants.

169. Pursuant to Article 68 of the UFZO, the MEN financed publishing of 17 textbooks and auxiliary books, intended for national and ethnic minorities and communities using regional languages of a total circulation of 9,709 copies – for a total amount of PLN 1,129,695. The expenses covered financing the preparation, development, printing of school textbooks and auxiliary books for teaching the Lithuanian language, the Kashubian language, the German language as a language of a national minority, the Belarusian language, and the Slovak language, and their delivery to relevant Regional Education Authorities.

In order to ensure access to textbooks for the Ukrainian language, in 2019 the MEN concluded an agreement with John Paul II Catholic University of Lublin for preparing textbooks for the Ukrainian language for grades I-III of general and technical upper secondary schools in the years 2019-2022. The textbook for grade I of general and technical upper secondary schools will be issued in 2020, for grade II – in 2021, for grades III and IV – in 2022.

Government programme for integration of the Roma community in Poland for 2014-2020

170. State budget funds spent in 2019 were mainly used for the purchase of textbooks and school supplies, payment of insurance against consequences of accidents, scholarships for Roma pupils, purchase of sports clothing, financial support for integration day-care rooms, summer recreation, integration and sightseeing trips, subsidising preschool education, payment of costs of improving the qualifications of the Roma teaching assistant, and financing activities for the protection of historical education of the Roma community.

In 2019, a total of 1576 pupils took advantage of the Roma programme as part of the above-mentioned tasks.

II.3.10. Rights of refugees and migrants

171. The terms and conditions for foreigners to take up education in Polish schools are governed by the following provisions:

- Article 165 and 166 of the UPO and the Regulation of the Minister of National Education of 3 August 2017 *on the education of persons not being Polish citizens and persons being Polish citizens who received education in schools operating in education systems of other countries* (Dziennik Ustaw [Polish Journal of Laws] of 2020, item 1283) – in relation to nursery schools and schools operating according to the new school system

and

- Article 363 of the Act of 14 December 2016 – *Regulations Introducing the Act - Education Law* and the Regulation of the Minister of National Education of 9 September 2016 *on education of persons who are not Polish citizens and persons who are Polish citizens who received education in schools operating in education systems of other countries* (Dziennik Ustaw [Polish Journal of Laws] of 2016, item 1453, as amended) – in relation to lower secondary schools and upper secondary schools until the end of education in these schools.

See also the information included in the points 30-37 of the report.

172. Pursuant to the Act of 12 December 2013 *on foreigners*, minors staying in a guarded centres for foreigners have the right to participate, at the time and place specified by the head of the centre, in educational and upbringing classes and recreational and sports classes. The curriculum is adapted to the age of the minor and the length of their stay within the territory of the Republic of Poland (Article 416 (2) of the Act of 12 December 2013 *on foreigners*).
173. In accordance with the obligations resulting from the Act of 13 June 2003 *on Granting Protection to Foreigners in the Territory of the Republic of Poland* (Dziennik Ustaw [Polish Journal of Laws] of 2019, item 1666, as amended), the Head of the Office for Foreigners provides the Polish language classes and basic supplies necessary for its learning for foreigners remaining in the care of the Office who apply for international protection in the Republic of Poland.

Teaching the Polish language to children consists in helping them with homework and conducting remedial classes. The teacher conducting the classes remains in touch with schools attended by the children, which allows for exchanging information about progress and problems in learning, giving the opportunity to adjust the classes to their needs.

Children who start obligatory education in Poland have (since 2017) the possibility to participate in a Polish language course intended specifically for them, aimed at facilitating

their integration in the school community. These classes are conducted in the form of learning Polish as a foreign language with elements of Polish realities, social and cultural matters. Children referred to above and who start obligatory education in Poland, take advantage of the Polish language teaching programme and model methodological solutions. The curriculum takes into account specific communication needs of children applying for international protection in Poland, including content of Polish realities and socio-cultural matters. It includes acquisition of basic skills, such as presentation of oneself and family, as well as simulations of communication situations at school. It focuses on gaining and consolidating knowledge on the basis of communication at a Polish school and the rules prevailing therein. It takes into account the age differentiation of participants, and didactic materials are adapted for two groups – children performing compulsory one-year pre-primary education and pupils of primary school as well as secondary school pupils. As part of the programme, a teacher's textbook containing lesson scenarios and educational materials for children was developed. The programme was developed from FAMI funds (*The Asylum, Migration and Integration Funds*) under the “Material and Educational Support for Foreigners Applying for International Protection in Poland” (Wsparcie materialne i edukacyjne dla cudzoziemców ubiegających się o ochronę międzynarodową w Polsce) project.

Children who apply for international protection and remain in the care of the Social Assistance Department in the Office for Foreigners are enrolled to schools after arriving to the centre for foreigners. Parents are supported in that by the employees of the centres for foreigners who provide information about the nearest schools and regulations concerning obligatory education and learning education, as well as assistance in filling in forms and completing documents, and, if necessary, also assisting during the first visit to school. Under the “Material and Educational Support for Foreigners Applying for International Protection in Poland” project, co-financed from FAMI funds, in the centres for foreigners in the years 2018 – 2020 after-school activities for school-age children were held aimed at releasing positive emotions, increasing their self-esteem, learning positive attitudes, expressing respect and empathy towards others, shaping the ability to solve problem situations in a peaceful way on the basis of dialogue and compromise. In addition, during the activities social, linguistic, motor and manual skills were developed, and the children were introduced to the host country – Poland, through the presentation of rules, laws, norms, and learning to respect them. In 2018, a study visit to Finland took place (co-financed by the Asylum, Migration and Integration Fund as part of the project “Study visits of employees of the Office for Foreigners”), in which participated, on the invitation of the Office, headmasters of the schools where compulsory education is performed by children living in centres for foreigners. The visit made it possible to get to know the Finnish education system, including the issue of teaching foreigners, and also allowed for the exchange of good practices among participants and establishing closer cooperation.

174. The Polish language is also taught to adult foreigners applying for international protection and staying in the care of the Office for Foreigners. Classes in groups for adults are conducted on the basis of unified didactic material, which was created as a result of project undertaken by the Office and Linguae Mundi Foundation. This material constitutes a curriculum at level A1 with elements of A2. It emphasises the development of listening and speaking, reading and writing skills. Furthermore, the curriculum takes into account specific communication needs of persons applying for international protection in Poland, including content concerning Polish realities and socio-cultural matters. It includes acquisition of basic skills, such as presentation of oneself and family, as well as simulations of communication situations: at stores, restaurants, on the street, at the

doctor's office, during travel, at school, while looking for a job, or when renting an apartment.

Under the "Material and Educational Support for Foreigners Applying for International Protection in Poland" project, co-financed from FAMI funds, in 2020 didactic materials for the Polish language learning at level A2 with elements of B1 will be created. The didactic materials will take into account specific communication needs of adult foreigners applying for international protection in Poland, including content concerning Polish realities and socio-cultural matters. The learning program will cover the development of skills and enrichment of the vocabulary in the field of introducing oneself and family, familiarizing with the customs and traditions, the administrative division of Poland, tourist regions, as well as simulations of communication situations: at a hairdresser's, in a grocery and clothing store, a pharmacy, at a specialist doctor's, at the police station, at a job interview, when choosing or arranging an apartment.

175. In addition, both at centres of the Office for Foreigners and those rented by the Office, educational and adaptive classes for children of preschool age are held, which are conducted by qualified and experienced teachers for 5 hours a day, 5 days a week. The Office also provides – whenever possible – funding of extracurricular and recreational and sports activities for children.

Minor foreigners who take advantage of education and care at public institutions, primary and secondary schools receive a school starter kit (in the form of supplies or in the form of vouchers for purchase thereof); pupils and children performing compulsory one-year pre-primary education are supplied with school textbooks.

The solutions adopted in order to ensure that refugees and migrants have the opportunity to exercise their right to education

176. Facilities have been envisaged for persons not being Polish citizens, who take part in external exams (see point 183 of that report).
177. Every year, when determining the directions of the state education policy, the minister responsible for education and upbringing analyses the needs, also in the field of professional development of teachers, taking into account, inter alia, changes introduced in the education system, results of external exams, and results of pedagogical supervision. The needs identified by the minister responsible for education and upbringing are taken into account in various ways by units subordinated to and supervised by that minister, and constant mechanisms defined in the provisions of Article 70a of the UKN and the Regulation of the Minister of National Education of 28 May 2019 on *teacher training facilities* (Dziennik Ustaw [*Polish Journal of Laws*] of 2019, item 1045), and earlier the Regulation of the Minister of National Education of 29 September 2016 on *teacher training facilities* (Dziennik Ustaw [*Polish Journal of Laws*] of 2016, item 1591).

In school years 2016/2017 – 2019/2020, the minister responsible for education and upbringing considered the needs related to professional training of teachers conducting classes with students/pupils coming from abroad, including activities for methodological advisers as significant – by adequately shaping the work plan of the ORE. During the aforementioned period the ORE provided training for teachers, methodological advisers, teacher-consultants, as well as specialists employed in teacher training facilities in the field of methodology of teaching Polish as a foreign language, as well as support for schools and teachers in the field of work with pupils returning to the Polish education system.

178. The directions of implementation of the state education policy are also important for the work of teacher development facilities. Public development facilities are **obliged** under the Regulation of the Minister of National Education of 28 May 2019 *on teacher training facilities* (and previously applicable regulations) **to organise and conduct** professional training for teachers to the extent resulting from the directions of state education policy set out by the minister responsible for education and upbringing and from changes introduced to the education system.
179. In Polish nursery schools and schools, including post-secondary ones, according to the SIO data, in the school year 2018/2019 there were approx. 44,000 foreigners, of whom:
- 206 were granted refugee status,
 - 778 applied for international protection,
 - 1,747 had other forms of protection (e.g. tolerated stay or stay for humanitarian reasons).
180. In order to enable quick and effective inclusion of pupils coming from abroad into the Polish education system, from 1 September 2017 there is a possibility to create preparatory classes in schools. A pupil can be admitted to such a class if he/she does not know or has a limited command of the Polish language, has adaptation problems due to cultural differences or change in the educational environment caused by e.g. being previously educated abroad or difficulties caused by crises or traumatic events, resulting from armed conflicts, natural disasters, or other humanitarian crises.

It is also important that in case of a larger number of pupils coming from abroad being admitted to a school, a preparatory class may also be created during the school year.

It is assumed that the pupil will attend that class during the school year in which he/she was admitted to the school. However, taking their progress into account, the school board may decide to shorten or extend the learning period, in this case - not more than one school year. At the preparatory class, Polish as a foreign language is taught at least 3 hours a week, and at the same time, the pupil implements the core curriculum in a manner adapted to their capabilities and knowledge of Polish. Each class cannot have more than 15 pupils. In the 2018/2019 school year there were approx. 300 pupils attending preparatory classes. The SIO does not collect separate data on the number of persons employed in schools as teacher assistants. Employing such persons is the responsibility of a local government unit, i.e. the body governing the school.

181. Local government units are entitled to a part of the general subsidy for education to carry out tasks connected with educating pupils coming from abroad. It provides for additional weights, including students using additional Polish language courses. Pursuant to the Regulation of the Minister of National Education of 15 December 2017 *on the method of subdivision of the educational part of the general subsidy for local government units in 2018* (Dziennik Ustaw [*Polish Journal of Laws*] of 2017, item 2395) the weight was $P^{41}=1.5$. A weight was also introduced for pupils attending preparatory classes of $P^{42}=0.3$. In 2019, these were $P^{44}=1.5$ and $P^{45}=0.3$.

The issues related to the professional development of teachers are also within the competences of the governing bodies of schools. An example of professional training can be the activities of the Warsaw Centre for Education and Social Innovation and Training, a local-government teacher training facility where a Contact Point and the Foreign Children Teaching Team and the advisor in terms of working with a foreign pupil were created, and where regular training courses for teachers working with children with migration experience are conducted.

The minister responsible for education and upbringing organises an annual competition for the implementation of the public task entitled *Supporting educational initiatives in the multicultural school environment* (“Wspieranie inicjatyw edukacyjnych w szkolnym środowisku wielokulturowym”). In the years 2017-2019 PLN 1,000,000 was allocated for this purpose. One of the objectives of this competition is to prepare a school for admission of pupils with migration experience, including refugees. Projects implemented within the framework of the competition include organisation of language and cultural classes for refugees, integration classes for Polish and refugee children, training courses for teachers working with children with migration experience. One of the objectives of the competition in 2017 was to subsidise projects for the preparation of teachers and school environments for work with pupils with migration experience and supporting commencement of their education at public schools. As part of the competition, the MEN subsidised, inter alia, a project covering the preparation of didactic materials for teachers, for working with children with migration experience, in the field of teaching Polish as a language of school education. Under the project, a series of training sessions for school leaders, teachers and counsellors took place in Kraków. Over 200 people took part in the workshops. Materials are available on the website of the Mikołaj Rej Foundation at <http://fundacjareja.eu/w-polskiej-szkole> free of charge.

182. The ORE organises training courses and workshops devoted to working with pupils with migration experience, e.g. for teachers learning Polish as the second language or working in a multicultural environment. The ORE website offers materials, free of charge, for work with pupils with migration experience and materials showcasing previous experiences and difficulties in working with, inter alia, refugee pupils. Useful materials on supporting pupils coming from abroad are also available on the website of the Centre for the Development of Polish Education Abroad (Ośrodek Rozwoju Edukacji Polskiej za Granicą) (<http://powroty.otwarteaszkola.pl/>).

Facilitation for persons not being Polish citizens who take external exams

183. Pupils or graduates who have limited command of the Polish language that hinders their understanding written text may take:
- an eight-grader exam – except for an eight-grader modern foreign language exam, under conditions and in the form adapted to their educational needs and psychophysical capabilities, based on a positive opinion of the school board;
 - maturity exam – except for a modern foreign language, a national minority language, an ethnic minority language or a regional language maturity exam, under conditions adapted to their needs and psychophysical capabilities, on the basis of a positive opinion of the school board.

Adjustment of the form of eight-grade exam consists in the preparation of separate examination sheets adjusted to the needs of the pupil, whose limited command of the Polish language makes it difficult to understand written text.

Adjustment of the conditions for conducting the eight-grader exam and maturity exam consists, inter alia, in the possibility of the use of a bilingual dictionary, the possibility of sitting the exam in a separate room, appropriate extension of the time allotted for conducting these exams.

Until 10 September of the school year in which external exams are to be conducted, the Director of the Central Examination Board, by way of a communication, indicates

detailed methods of adjusting the conditions and forms of conducting the eight-grader exam and the maturity exam for persons who need that.

184. On 30 May 2019, a **conference on “Education of a child with migration experience”** held in Warsaw. The conference was organised by the Regional Education Superintendent of the Mazowieckie Province in cooperation with the Representative of the United Nations High Commissioner for Refugees in Poland.

The guiding idea of the meeting was a social and educational dimension of education of a child with migration experience. The purpose of the meeting was to inspire participants to search for and find the best solutions in work with a group of refugee children or those changing their place of stay for other reasons.

The main topic of the discussion panel was learning Polish as a foreign language by refugee children starting education in our country. The speakers included: representatives of UNHCR in Poland, the MEN, the Pedagogical University in Kraków, the Institute of Psychology of the Jagiellonian University, the Ocalenie Foundation, the Warsaw Heroes Primary School in Podkowa Leśna (Szkoła Podstawowa im. Bohaterów Warszawy w Podkowie Leśnej).

III. Dissemination and promotion of the provisions of the Convention

III.1. Country-wide activities

185. **The nationwide scientific conference “School of Equal Opportunities”** held on May 19-21, 2019 in Gdynia. It concerned the diagnosis of the existing social and educational inequalities at school and the methods of reducing them. The speakers discussed the following areas: sociology and philosophy of education, social pedagogy, special education, care pedagogy, intercultural education, psychology and social prevention.

About 150 people took part in the conference. Participants included educational decision makers, school headmasters, teachers, representatives of the academic community, school boards, teacher training centres, psychological and pedagogical counseling centres and Erasmus + program beneficiaries. The conference participants took part in lectures, an expert panel and thematic sessions. They could learn about the current research relating to the social determinants of educational inequalities, as well as the solutions that affect the equalization of opportunities for children and youth in education.

The honorary patronage over the event was taken by the Minister of National Education, the Board of Education in Gdańsk and the Mayor of Gdynia. The organizer of the conference was the Foundation for the Development of the Education System (FRSE) - the National Agency of the Erasmus + Program.

186. **Congress for the Development of the Education System**

During the 1st Congress entitled “Competences of the Future” (September 2018) – the importance of competences acquired in formal, non-formal and informal learning processes was discussed for each employee and citizen, the importance of the impact of the quality of education on the level of competences of Poles and their competitiveness on the labour market was emphasized. It was discussed how to educate for the future. An important issue of the Congress was also the restoration of vocational (sectoral) education in Europe, especially in Poland. The issues of teachers’ competences and the presence of new technologies at all stages of education were also discussed. The event was attended by many experts and decision-makers of local, regional and national level with a real

impact on reforming the education system in Poland, as well as teachers and educators. As a result, it was possible to deepen the dialogue on the development of education between theoreticians and practitioners. There were also representatives of the young generation for whom education is the key to consciously shaping their own future.

2nd Congress (September 2019) entitled "Wisdom-Creativity-Innovation. Education for the Future" – was devoted to teaching programs and methods that contribute to the acquisition of personal, social and civic competences by learners.

3rd Congress (2nd October, 2020, online) – under the slogan "Erasmus + FRSE. Education of the future + The future of education". Sessions and thematic workshops focused on preparing for learning and teaching in the future through the participation in international educational programs.

III.2. Activities undertaken and supported by the Polish Committee for UNESCO

187. Since 1956, a network of UNESCO Associated Schools (ASPNet) has been operating in Poland, which at present consists of 110 member schools. These institutions commit to spread the ideas set out in UNESCO conventions, and from 2015, to participate in the achievement of the objectives adopted by the Sustainable Development Agenda 2030, and in particular goal 4.

Member schools implement projects in the field of sustainable development (as part of global education), education for peace and human rights in the field of dialogue between cultures and religions (intercultural education promoting knowledge and respect for people from different cultures, national minorities, and emigrants) and organise celebrations of days and anniversaries established by UNESCO and UN, such as: International Day of Education, International Holocaust Remembrance Day, International Day of Women and Girls in Science, World Radio Day, International Mother Language Day, International Day of Women's Rights and World Peace, International Day for the Elimination of Racial Discrimination, World Telecommunication and Information Society Day, World Day for Cultural Diversity for Dialogue and Development, International Day of Innocent Children Victims of Aggression, World Refugee Day, International Day of the World's Indigenous Peoples, International Literacy Day.

The coordinator for participation of Polish schools in the ASPNet shall be the Polish Committee for UNESCO (Polski Komitet do spraw UNESCO).

188. In addition, the Polish Committee for UNESCO, especially through the work of the Polish Information for All Programme (IFAP) Committee, conducts activities aimed at promoting Media and Information Literacy (MIL) in Poland as part of publishing activities, as well as organising and supporting conferences and congresses in Poland on media education.